



REQUEST FOR PROPOSALS

DESIGN-BUILD SERVICES FOR SOLAR AND ENERGY
STORAGE INSTALLATIONS AT CATEGORY 1 CITY-OWNED
PROPERTIES

FOR THE

WATER & POWER DEPARTMENT, POWER DELIVERY

CITY OF PASADENA, CALIFORNIA

Attachments:

A - City's_Standard_Form_(Traditional)_Design-Build_Agreement_Place Holder
B - Insurance Requirements_PWP Rooftop Solar Design Build Project
D - REQUIRED FORMS - AAs - SIG-LEGAL-STATUS - DECLARATION OF NONCOLUSION 08022024 v2
E - DISQUALIFICATION_DISCLOSURE (4)
F - CONFLICT_OF_INTEREST (5)
H - Pasadena_Taxpayer_Protection_Amendment_Disclosure (2)
N - DESIGNATED REPRESENTATIVESdocx
O - FAITHFUL_PERFORMANCE_BOND_FORM (2)
P - Allendale Branch Library_RFP
Q - Hamilton Park-public_RFP
R - Jackie Robinson Community Center_RFP
S - La Pintoresca Branch Library-public_RFP
T - Lamanda Park Branch Library-public_RFP
U - Linda Vista Branch Library_RFP
V - Robinson Park and Recreation Center_RFP
W - San Rafael Branch Library_RFP
X - Victory Park_South_RFP
Y - Washington Park-public_RFP
Z - Central Library_RFP
AA - Glenarm Power Plant-RFP
BB - Madison Parking Lot_RFP



1. Introduction

1. *Summary*

The City of Pasadena (“City”), through Pasadena Water and Power (“PWP”), is issuing this Request for Proposals (“RFP”) to solicit proposals from qualified firms to provide Design-Build services by a Design-Build Contractor (“Design-Builder,” “D-B,” “Contractor,” or “Proposer”) for the design, procurement, construction, installation, interconnection, commissioning, and, if authorized by the City, operations and maintenance of solar and energy storage installations at Category 1 City-owned properties (the “Project”).

The Project includes Category 1 priority sites identified in this RFP that are intended to support near-term implementation and completion by June 2028. Solar is desired at all sites, and energy storage is highly desired where feasible based on site-specific conditions, technical constraints, cost, and City direction. The site capacities identified in this RFP are estimated and are provided for planning and proposal purposes only. Final system size, configuration, and inclusion of energy storage will be determined based on site-specific evaluation, design development, feasibility, cost, and City direction.

The Scope of Work includes site evaluation and feasibility assessment, engineering and design, permitting, procurement of equipment and materials, construction, installation, interconnection, commissioning, stakeholder engagement support, and ongoing operations and maintenance of the selected improvements, as applicable to the awarded contract. The Scope of Work also requires the selected Proposer to evaluate existing electrical infrastructure and account for future electric vehicle (“EV”) charging expansion as part of the site evaluation and design approach, including where EV-related load assumptions may affect equipment sizing, panel capacity, and related system components.

The City reserves the right to award one contract, multiple contracts, by individual site, by combination of sites, or in whole, as determined to be in the best interest of the City. Proposers may submit proposals for any individual site or any combination of Category 1 sites identified in this RFP. Proposers will be evaluated only for the sites included in their proposals. The City also reserves the right to remove one or more sites from the awarded scope or otherwise modify the awarded scope based on feasibility, cost, funding, schedule, City priorities, or other considerations identified during the Project.

A Selection Committee shall review the Proposals received and complete final scoring based on the City’s Design and Performance Criteria for the Project and the evaluation criteria identified in this RFP, pursuant to Pasadena Municipal Code (“P.M.C.”) section 4.08.047, competitive selection, using the Design-Build alternative project delivery method. Proposers recommended for award will be evaluated and determined on a best-value basis, based on qualifications, organization/team composition, technical proposal, financial strength, safety record, local business, small business, price proposal, and, if applicable, interview scores.

2. *Background*



The City of Pasadena is an ethnically diverse community that is home to approximately 142,017 people. Pasadena is the ninth-largest city in Los Angeles County. It is one of the primary cultural centers of the San Gabriel Valley. The City covers approximately 22.5 square miles, with an average of ten residents per acre. The median age of its residents is approximately 36.9 years. There are over 100,000 jobs in a wide variety of industries in the City of Pasadena.

On January 30, 2023, the Pasadena City Council adopted Resolution 9977, establishing a goal for Pasadena Water and Power (“PWP”) to source 100% of Pasadena’s electricity from carbon-free resources by the end of 2030, while optimizing affordability, rate equity, system stability, and reliability. In furtherance of that goal, on December 15, 2025, the City Council unanimously approved PWP’s Optimized Strategic Plan (“OSP”), a forward-thinking framework outlining the pathways, investments, and decision points that will position Pasadena to achieve a carbon-free future.

A key component of the OSP is the expansion of locally sited renewable generation and energy storage resources within Pasadena. This approach is intended to reduce long-term costs, maximize the use of public assets, and equitably distribute the benefits of carbon-free energy across all customer classes. Locally developed solar resources also reduce reliance on external energy markets and enhance grid resilience by generating electricity closer to where it is consumed.

To support implementation of the OSP, PWP has coordinated with City departments to identify City-owned properties that may be suitable for future solar and energy storage development. This RFP is limited to Category 1 priority sites that are more advanced in project development and better positioned to support near-term implementation. These sites are intended to support completion by June 2028.

The City reserves the right to award one contract, multiple contracts, by individual site, by combination of sites, or in whole, depending on the proposals received and the City’s evaluation of project delivery, cost, schedule, and overall fit for the program, in its sole discretion.

3. Contact Information

Deadline for Questions

The deadline to submit questions related to this solicitation is Thursday, September 3, 2026, prior to 1:00 pm.

Questions regarding this solicitation should be submitted directly through the City's eProcurement Portal Q&A function. Do not contact any City employee or official regarding this solicitation. Any questions submitted after the date and time specified may not be considered.

Project Contact:

Jerome Bragg

Senior Project Manager

Email: jbragg@cityofpasadena.net

Phone: [\(626\) 744-4438](tel:(626)744-4438)



Procurement Contact:

Antonio Watson

Project Manager

Email: awatson@cityofpasadena.net

Phone: [\(626\) 744-8382](tel:(626)744-8382)

Department:

Water & Power Department, Power Delivery

4. *Timeline*

Release Project Date	July 23, 2026
Question Submission Deadline	September 3, 2026, 1:00pm
Proposal Submission Deadline	September 30, 2026, 1:00pm



2. General Instructions

1. ***NOTICE REGARDING DISCLOSURE OF CONTENTS OF DOCUMENT***

All responses to this Request for Proposal (RFP) accepted by the City of Pasadena (City) shall become the exclusive property of the City and subject to the California Public Records Act requirements set forth in California Government Code Section 7920.005 et seq. At such time as the City Manager recommends a contractor to the City Council, and such recommendation, with any recommended contract appears on the Council agenda, all proposals accepted by the City shall become a matter of public record and shall be regarded as public, with the exception of those elements of each proposal which are defined by the contractor as business or trade secrets and plainly marked as "Trade Secret", "Confidential" or "Proprietary". Each element of a proposal which a contractor desires not to be considered a public record must be clearly marked as set forth above, and any blanket statement (i.e. regarding entire pages, documents or other non-specific designations) shall not be sufficient and shall not bind the City in any way whatsoever. If disclosure is required or permitted under the California Public Records Act or otherwise by law, the City shall not in any way be liable or responsible for the disclosure of any such records or part thereof.

2. ***Eligibility Requirement***

Proposer must possess and provide the following licenses or certifications to be deemed qualified to perform the work specified:

Class A (General Engineering Contractor) or Class B (General Building Contractor), or, where sufficient for the full scope of Work of a particular site, Class C-10 Electrical (Specialty Contractor). Lead Architects and/or Engineers must hold an active license and registration in the State of California.

3. ***Electronic Submission and Delivery Instructions***

Parties interested in responding are required to submit proposals electronically through the City of Pasadena's [eProcurement Portal](#) no later than 1:00 pm on Wednesday, September 30, 2026. Please upload sufficiently early electronically through the city's eProcurement Portal before the time and day listed in the Notice Inviting Proposals. Proposals must be received in the system prior to the deadline.

The entire proposal must be formatted on standard-size 8½"x11" pages; 12 point font only. The "Technical Proposal," including any additional data, can be no more than 100 grand total pages. The Statement of Qualifications and Experience is excluded from this page limitation. The separate Price Proposal is also excluded from this page limitation.

Proposals received after the Proposal Deadline may not be accepted by the City.

4. ***Statement of Qualifications and Relevant Experience***



The Proposer shall provide information demonstrating its qualifications, organizational capacity, and relevant experience to successfully perform work of similar scope, complexity, and delivery method.

At a minimum, the Proposal shall include the following:

1. Corporate Structure and Team Composition

Describe the Proposer's corporate structure and legal organization. If the Proposer is a joint venture, partnership, consortium, or other multi-firm team, identify each participating firm and clearly describe the primary roles and responsibilities each will perform for site evaluation, design, permitting, procurement, construction, commissioning, and operations and maintenance.

2. Relevant Project Experience

Provide a detailed narrative describing the Proposer's, or combined team's, relevant experience with comparable Solar and, if applicable, Hybrid projects. The narrative should identify project size, capacity, complexity, delivery method, and the Proposer's role in performing the work. The narrative should address experience with:

- site evaluation and feasibility assessment;
- engineering and design;
- procurement;
- construction and commissioning;
- ongoing operations and maintenance for similar facilities;
- projects performed for public entities, including municipalities or utilities;
- projects located in California; and
- rooftop, ground-mounted, and solar parking canopy systems, as applicable.

3. Reference Projects

Submit a minimum of **three (3) reference projects** for successfully completed commercial Solar or Hybrid projects of similar scope or complexity, completed within the last **six (6) years**. Projects completed in California or for public agencies, municipal utilities, or similar entities should be identified where applicable. **At least one reference project should demonstrate experience with post-construction operations and maintenance services for a facility of similar type or complexity.**

For each reference project, provide, at a minimum:

- project name and location;
- owner/client name;
- project dates;
- brief description of the work performed;
- delivery method;



- the Proposer's role on the project;
- project capacity and, if available, contract amount or construction value; and
- reference contact information, including name, title, phone number, and email address.

If the Proposer wishes to identify additional relevant projects beyond the three required reference projects, the Proposal may include a summary list stating the project name, client, capacity, and completion date.

4. Project Personnel

Identify the key personnel proposed for the major components of the Project, including site evaluation, design, permitting, procurement, construction, commissioning, and operations and maintenance. For each identified individual, provide a summary of relevant qualifications, certifications, licenses, and project experience.

5. Licenses and Qualifications

Identify all contractor licenses and other professional licenses or certifications relevant to the Scope of Work. At a minimum, the Proposal shall identify the California contractor license or licenses proposed to be used for the Project and confirm that such licenses are current and in good standing.

If the Proposer's primary license does not cover the full Scope of Work, the Proposal shall identify the subcontractors or team members that will provide the required licensed services, including the applicable license numbers and a brief summary of relevant experience.

6. Financial Capacity and Organizational Stability

Provide information demonstrating the Proposer's financial capacity and organizational stability to support construction, commissioning, and the required five (5) years of operations, maintenance, and monitoring services. At a minimum, the Proposal shall include:

- a surety letter confirming the Proposer's ability to obtain the payment and performance bonds required by the final contract for the applicable construction scope;
- financial statements for the most recent three (3) fiscal years, whether audited or otherwise prepared in the ordinary course of business, sufficient to demonstrate financial capacity;
- a brief description of the Proposer's length of time in business and length of time licensed in its current form; and
- if the Proposer is relying on the financial strength of a parent company, affiliate, or other entity, identification of that entity together with supporting financial information sufficient to demonstrate available financial capacity.

5. Technical Proposal

The Technical Proposal shall disclose the Proposer's technical approach in as much detail as possible, including, but not limited to, the requirements of the technical proposal instructions and all required forms and submittals identified in the Attachments and Submittals/Checklist. No pricing information shall be included in the Technical Proposal.



At a minimum, the Technical Proposal shall include the following:

1. Project Methodology and Execution Plan

The Proposer shall provide a detailed narrative describing its overall approach to performing the Scope of Work for the Project.

At a minimum, the narrative shall describe the Proposer's methodology for:

- conducting site evaluations and feasibility assessments;
- advancing engineering, design, and permitting for each site;
- evaluating existing electrical infrastructure and incorporating future EV charging expansion needs into load calculations, equipment sizing, and overall design assumptions for each site;
- determining the maximum viable Solar capacity and, where feasible, Hybrid capacity for each location;
- coordinating procurement planning, equipment sourcing, and construction sequencing;
- managing construction, commissioning, testing, and closeout activities; and
- providing five (5) years of operations, maintenance, monitoring, and system support services following Final Acceptance.

The narrative shall also describe how the Proposer will:

- coordinate with the City, PWP, affected site users, and other stakeholders;
- manage site-specific constraints, operational considerations, and service interruptions;
- support cost control, schedule management, and development of site-specific pricing and implementation strategies; and
- maintain continuity from design through construction, commissioning, and long-term operations and maintenance.

The Proposer shall also describe its approach to maintaining continuity of site operations during Project implementation. This shall include the Proposer's methodology for minimizing disruption to site activities, maintaining safe pedestrian access and required path of travel at occupied sites, coordinating any required outage or service interruption with the City in advance, and restoring service in a timely manner when interruptions are necessary. The Proposer shall also describe its approach to system monitoring, fault response, corrective maintenance, and restoration of service, including proposed response times and escalation procedures for outages, equipment failures, and significant performance deficiencies.

The Proposer shall also describe its overall approach to system operation during utility outages, including the proposed approach to islanding, transfer, controls, operating limitations, restoration of service, and the role of energy storage in supporting outage performance.



For each site where Energy Storage is proposed or required, the Proposer shall size the Battery Energy Storage System (BESS) to support the full building load for a minimum duration of four (4) hours during utility outage conditions. The Proposer shall also describe its proposed site microgrid approach for each such site, including island mode capability, the basis of battery sizing, any operational assumptions, and any limitations or conditions affecting four-hour performance.

The Proposer should clearly demonstrate its understanding of the Project objectives, site conditions, and the City's desire for Solar at all sites and Energy Storage where feasible.

2. Project Schedule

The Proposer shall provide a preliminary master Project schedule for the proposed scope, together with a site-by-site milestone schedule for each site included in the Proposal.

The schedule shall identify the Proposer's anticipated timing for site evaluation, design, permitting, procurement, construction start, substantial completion, commissioning, and closeout, and shall be sufficiently detailed to demonstrate the Proposer's sequencing approach, assumptions, and ability to support completion by June 2028.

The Proposer shall clearly identify any schedule assumptions that depend on the number of sites awarded, the combination of sites awarded, sequencing efficiencies associated with multiple-site delivery, long-lead equipment considerations, or other factors that may materially affect schedule performance.

3. Conceptual Schematics and Design

The Proposer shall provide conceptual design information sufficient to demonstrate its understanding of the Project sites, technical approach, and recommended system configuration for the locations included in its Proposal.

For each site included in the Proposal, the Proposal shall include conceptual layouts and preliminary single-line diagrams. The conceptual design submittals shall illustrate the Proposer's recommended approach to site use, equipment arrangement, electrical interconnection, and overall system configuration.

To the extent feasible, the Proposal shall provide conceptual options for:

- Photovoltaic Solar (Solar) facilities; and
- Solar and Energy Storage (Hybrid) facilities.

Conceptual design information shall be based on the Proposer's preliminary understanding of site conditions, available space, operational constraints, and technical feasibility. The purpose of this requirement is to demonstrate the Proposer's technical understanding and conceptual approach; it is not intended to require final engineering or permit-level design as part of the Proposal.

The Proposer shall clearly identify any major assumptions, limitations, data gaps, or site-specific constraints reflected in its conceptual layouts, preliminary single-line diagrams, and other conceptual design information.



In addition, the Proposal shall include a concise site-by-site summary identifying the anticipated outage operating mode for each site. For each site where Energy Storage is proposed or required, the summary shall identify the proposed microgrid operating approach, confirm whether the system is intended to support full building backup for a minimum duration of four (4) hours during utility outage conditions, and describe any key assumptions, constraints, or limitations affecting outage performance. For sites where Energy Storage is not proposed, the summary shall identify the anticipated outage operating mode and any related assumptions or constraints.

6. *Separate Price Proposal*

The Price Proposal shall be submitted through the City's eProcurement Portal as part of the separate Price Proposal submission. Cost information shall be included only in the separate Price Proposal submission and shall not be included in the Technical Proposal, except where expressly requested by the City.

Because this is a Design-Build procurement, the Price Proposal shall be based on the Proposer's proposed approach to delivering the Category 1 sites included in its Proposal, including design, permitting, procurement, construction, commissioning, and, if authorized by the City, operations and maintenance services. The Price Proposal shall reflect the site-specific award structure described in this RFP.

For purposes of preparing the Price Proposal, the Proposer shall provide pricing by individual site and shall separately identify any pricing assumptions, exclusions, and qualifications applicable to the proposed work. Solar is desired at all sites, and Energy Storage is highly desired where feasible. Site capacities identified in this RFP are estimated and are provided for planning and proposal purposes only.

The Proposer shall complete all pricing tables or pricing fields included in the City's eProcurement Portal for this solicitation.

In addition to completing the required pricing tables or pricing fields in the City's eProcurement Portal, the Proposer shall upload the required supporting narrative and documentation for the Price Proposal through the Submittals/Checklist, including the Basis of Estimate and Pricing Assumptions and any other supporting information expressly requested by this RFP. Supporting detail provided by attachment does not relieve the Proposer of the obligation to complete all applicable pricing tables or pricing fields included in the City's eProcurement Portal.

The Price Proposal shall include all pricing required by this RFP. Pricing for each item shall include all costs necessary to perform the applicable services or work associated with that item.

The Price Proposal shall include the required pricing entries in the City's eProcurement Portal together with the required supporting detail uploaded through the Submittals/Checklist, including any information required by this RFP or reasonably necessary to explain the basis of the proposed pricing. Any such attachment shall be clearly labeled.

The pricing information provided by the Proposer will be considered by the City in determining whether the proposed compensation is fair and reasonable in light of the services and work to be provided.



Any additional costs outside the scope of the final contract must be approved by the City in writing before such work is commenced. The City will not separately reimburse costs not included in the Proposal unless expressly authorized in writing under the final contract.

The City may request clarification or supplemental pricing detail, including assumptions and pricing support, if necessary to evaluate the Proposal.

At a minimum, the Price Proposal shall include the following:

- Category 1 Site Pricing by Site
- Basis of Estimate and Pricing Assumptions
- Operations and Maintenance Services
- Required Forms

All amounts shall be stated in U.S. dollars. If a pricing item is not applicable, the Proposer shall enter "\$0," "0%," or "Not Applicable," as appropriate. Blank entries may be considered incomplete.

7. Pre-Proposal Meeting

See the "Timeline" in the Introduction section ([#Introduction](#)). If there is a Mandatory pre-proposal meeting, bidders/proposers are required to attend at the time, date, and location included in the Timeline. If there is a Non-Mandatory pre-proposal meeting, bidders/proposers are not required to attend.

Each bidder/proposer will have the opportunity to clarify and ask questions regarding the Specifications. The Pre-Proposal Meeting will be held at the time, date, and location in the Timeline of this solicitation.

8. Definitions

The words (A) "City", (B) "Department", (C) "Director", or (D) "Contractor", as used in this RFP, shall be understood to refer respectively to (A) the City of Pasadena, California; (B) the several departments therein; (C) the directors of the several City departments; or any of their properly authorized assistants; and (D) the person, firm or corporation with whom the contract is made by said City or the agent or legal representative who may be appointed to represent such person, firm or corporation in the signing and performance of said contract.

Except as otherwise defined herein or in the City's Standard Form of Agreement, all definitions of capitalized terms used in this RFP are set forth in the General Conditions to the Design-Build Agreement ("A201") or ("General Conditions").

9. City's Liquidated Delay Damages



Time is of the essence for the performance of the Work. The City and the selected Proposer acknowledge that, if the selected Proposer fails to achieve Substantial Completion / Ready-for-Service for an applicable site by the required completion date, the City will sustain damages that are difficult to ascertain with certainty at the time of contracting, including the value of delayed power generation, replacement power and attributes, administrative costs, extended project coordination and oversight costs, delayed system availability, interference with site operations, and other delay-related damages.

The required completion date for each applicable site shall be established in the Contract Documents and is intended to support completion by June 30, 2028. If the selected Proposer fails to achieve Substantial Completion / Ready-for-Service for an applicable site by the required completion date, the selected Proposer shall pay the City liquidated damages for each calendar day of delay until Substantial Completion / Ready-for-Service for that site is achieved.

The daily liquidated damages amount for each delayed site shall be calculated as follows:

Daily Liquidated Damages = (Estimated Site Capacity [kW] × 24 hours × 21% × \$0.08/kWh) + \$100

For purposes of this calculation, the 21% capacity factor is based on the solar capacity factor used for Pasadena in PWP's Optimized Strategic Plan analysis, and the \$0.08/kWh replacement power and attributes value reflects the City's estimated 2028 cost of replacement energy, renewable attributes, and resource adequacy. The \$100 adder represents estimated daily administrative costs associated with delay.

For purposes of calculating liquidated damages, the Estimated Site Capacity shall be the estimated generating capacity identified for the applicable site in the RFP, Proposal, or other Contract Documents, unless a different value is expressly stated in the Contract Documents for that site.

By way of example only, if the applicable site has an Estimated Site Capacity of 500 kW, the daily liquidated damages amount would be calculated as follows:

$(500 \times 24 \times 21\% \times \$0.08) + \$100 = \301.60 per calendar day

The parties agree that the liquidated damages amounts and formula set forth herein are intended to represent a reasonable estimate of the damages the City is expected to incur as a result of delayed completion and are not imposed as a penalty.

Assessment of liquidated damages shall not relieve the selected Proposer of the obligation to complete the Work, nor shall it limit any other rights or remedies available to the City under the Contract, except as expressly provided therein.



3. General Requirements

1. Standard terms and conditions

Prior to the award of any work hereunder, City and contractor shall enter into a written contract in substantially the form attached hereto (to be provided by Addendum) with such revisions thereto as the City may determine necessary and appropriate. PROPOSERS responding to this RFP are strongly advised to review all the terms and conditions of the contract, and shall be deemed to have accepted them.

2. Firm commitment of availability of service

Once a proposal is opened, a PROPOSER is expected to maintain an availability of service as set forth in its proposal for at least four months after date for opening proposals.

3. Reservations

The City reserves the right to reject any or all bids or proposals and any item or items therein, and to waive any non conformity of proposals with this RFP, whether of a technical or substantive nature, as the interest of the City may require.

4. Documents to be construed together

The Request for Proposal (RFP), the Proposal, the Non Collusion Affidavit, and all documents referred to in the complete specifications and the Contract to be entered into between the Contractor and the City, and all modifications of said documents, shall be construed together.

5. Patent fees; patent, copyright, trade secret and trademark fees

Each PROPOSER shall include in the price bid any patent fees, royalties and charges on any patented article or process to be furnished or used in the prosecution of the Work.

6. PUBLIC CONTRACT CODE SEC. 9204 NEW PUBLIC WORKS CLAIMS PROCEDURE

Observe attached details regarding Public Contract Code Section 9204. AB 626, approved by the Governor on September 29, 2016, created a new Public Contract Code Section 9204, which specifies new procedural requirements for claims submitted by a contractor on any public works project. These new requirements contain burdens for both private contractors and public entities and are specifically made applicable to charter cities.

7. Request for Proposal (RFP) Quantities / Estimated Scope



The quantities, site capacities, and scope descriptions contained in this RFP are estimates only and are provided for planning, proposal preparation, and evaluation purposes. The City reserves the right to increase, decrease, remove, or otherwise revise the scope of work or sites included in the awarded scope based on feasibility, cost, funding, schedule, City priorities, or other considerations identified during the procurement process or Project development, as determined to be in the best interest of the City and in accordance with the terms of this RFP and the final contract.

Proposal pricing shall be based on the Proposer's submitted Price Proposal and the pricing structure required by this RFP. Payment shall be made only for work authorized by the City and performed in accordance with the final contract.

8. CHANGE ORDER MANAGEMENT

Any additional work identified during the course of the project that is deemed necessary, but outside the original Scope of Services, must be recorded as a Change Order and approved by the City Project Manager in writing before work is started.

9. Taxpayer Protection Act

Under the provisions of the City of Pasadena Taxpayer Protection Act ("TPA"), the Contractor/Organization will be considered a "recipient of a public benefit." The full provisions of the TPA are set forth in Pasadena City Charter, Article XVII. Under the TPA, City public officials who approve this Contract are prohibited from receiving specified gifts, campaign contributions or employment from Contractor for a specified time. As well, if this Contract is to be approved by the City Council, Councilmembers or candidates for Council are prohibited from receiving campaign contributions during the time this Contract is being negotiated (from the due date for an RFP response until award of a contract; this restriction does not apply to competitive and noticed low bid contracts). This prohibition extends to individuals and entities that are specified in the TPA and includes Contractor/Organization and its trustees, directors, partners, corporate officers and those with more than a 10% equity, participation, or revenue interest in Contractor/Organization. Contractor/Organization understands and agrees that: (A) Contractor/Organization is aware of the TPA; (B) Contractor/Organization will complete the forms provided by the City to identify all of the recipients of a public benefit specified in the TPA; and (C) Contractor/Organization will not make any prohibited gift, campaign contribution or offer of employment to any public official who negotiated and/or approved this Contract, and will not make any prohibited campaign contribution during the time this contract is being negotiated. The Contractor shall submit a copy of the completed TPA form to the City Clerk's Office if the contract is to be awarded by the City Council via e-mail: OfficialRecords-CityClerk@Cityofpasadena.net or by fax: (626) 744-3921, and submit a copy with the response package. For more information please go to: <https://www.cityofpasadena.net/city-clerk/disclosure-reportsax-payer-protection-act-tpa/>

10. CONFLICT OF INTEREST STATEMENT



The proposing Consultant shall disclose any financial, business or other relationship with the City of Pasadena that may have an impact upon the outcome of the contract or any construction project. The Consultant shall also list current clients who may have a financial interest in the outcome of this contract or the construction project that will follow. The proposing Consultant shall disclose any financial interest or relationship with any construction company that might submit a bid on the construction project related to this solicitation. Proposers must complete and submit the following Form: Conflict of Interest Statement

11. Compliance with the Levine Act (Government Code Section 84308)

The Levine Act precludes an officer of a local government agency, including an elected official, from participating in the award of a contract if he or she receives any political contributions totaling more than \$500 in the 12 months preceding the pendency of the contract award, and for 12 months following the final decision, from the person or company awarded the contract. Proposers should ensure their employees, agents, and consultants are aware of the requirements of the Levine Act before the proposal is submitted, so as to avoid inadvertent violations.

12. Payment of Subcontractors, Suppliers, and Workers

The Prime Contractor shall be solely responsible for the payment of all subcontractors, suppliers, laborers, and any other persons or entities employed in connection with the performance of this Contract.

The City shall have no obligation to pay, or to ensure the payment of, any subcontractors, suppliers, or workers directly. The Prime Contractor shall ensure timely and full payment in accordance with all applicable laws, including but not limited to California Public Contract Code §§ 10262 and 10262.5 and Labor Code § 218.7.

Failure to comply with this requirement may result in the withholding of payments, imposition of penalties, and/or other remedies available under the Contract and applicable law.

The Prime Contractor shall also include in all subcontracts a provision requiring subcontractors to pay their lower-tier subcontractors and suppliers in a timely manner consistent with this section.

13. Request For Proposals (RFP) Not Contractual

Nothing contained in this RFP shall create any contractual relationship between the Proposer and the City. The City accepts no financial responsibility for costs incurred by any proposer in the preparation and/or submission of a Proposal in response to this RFP, participating in interviews, or in anticipation of any contract.

14. Duty to Inquire



Should the Proposer find discrepancies in or omissions from the RFP or other documents, or should the Proposer be in doubt as to their meaning, the Proposer shall submit a Request for Information through the Q&A portal on the City's procurement website, OpenGov.com. Refer to the General Instructions, Addenda for requirements.



4. City Requirements

There are items included in the section named Submittals/Checklist of these specifications which a bidder or proposer must complete or submit to establish compliance with a number of City requirements, including, but not limited to, acknowledgements, proposal components, certifications, required forms, and other supporting documentation. These items and their instructions should be considered an integral part of the specifications, and failure to complete or submit the required items may be grounds, in the sole discretion of the City, for rejection of any bidder or proposer.

1. *Pasadena Operating Companies*

If this solicitation is issued by an Operating Company of the City of Pasadena including the Pasadena Center Operating Company; or Rose Bowl Operating Company; or Pasadena Community Access Corporation: In this solicitation, any reference to the City, shall actually refer to the PCOC, PRHB, or RBOC, or PCAC, e.g. "City" shall refer to the Operating Company, "City Council" to its Board of Directors, and "City Manager" to its Chief Executive Officer.

2. *Equal Employment Opportunity in Contracting*

Policy - The City of Pasadena is committed to a policy of Equal Employment:

- Contracting. Contractors expressly agree to comply with the City's ordinances and regulations regarding Equal Opportunity Employment as well as regulations that may be mandated by the source of the funds supporting this contract.

Compliance – To the extent permitted by law, Contractor expressly agrees to establish compliance with the Equal Employment Opportunity Practices Provisions of Chapter 4.08 of the Pasadena Municipal Code, and the Rules and Regulations adopted pursuant to said ordinance.

The successful bidder or proposer may be required to submit documentation during the term of the contract to evidence on going compliance with the City's Equal Opportunity Practices Provisions. Such documentation may include, but not be limited to certified payroll records and Current Permanent Workforce Utilization reports.

Required Forms – Each bidder or proposer must submit a completed Form AA-1. Failure to submit this form will result in automatic disqualification with no exceptions unless bidder or proposer has an approved Form on file with the City.

Questions regarding Chapter 4.08 of the Pasadena Municipal Code and regulations adopted pursuant thereto should be directed to the Department of Finance, Purchasing Division 626.744.6755.

3. *Declaration of Non-Collusion by Contractor*

This form is only applied for formal solicitations \$75,000 or more. The City requires that each bidder or proposer executes and submits to the City with the Bid/Proposal, the attached Declaration of Non Collusion in the section named "Submittals/Checklist."



4. Local Preferences

The City of Pasadena is committed to promoting the economic health and well being of its residents. To this end, contractor agrees to recruit Pasadena residents initially and to give them preference, if all other factors are equal, for any new positions that result from the performance of this contract and which are performed within the City.

5. Pasadena Business License

Awarded bidder or proposer may be required to obtain and pay for any required business license under Title 5 of the Pasadena Municipal Code.

- If the business will not come into the City for the purpose of providing services for this contract they are not required to obtain a business license.
- If the business will only be coming into the city no more than 10 times to work on projects, they are charged 33% of the annual tax (Pasadena Municipal Code Section 5.04.130C)
- If they come into the City more than 10 times they are required to pay the annual fee.
- Any subcontractors used by the awarded bidder or proposer will be required to obtain a license if they will be coming into the City to perform services.

For further information contact Municipal Services Department at (626) 744-4166, Monday-Friday between 7:15 am and 5:15 pm. Additional Information regarding business license fees can be found here: <https://www.cityofpasadena.net/finance/licenses/business-licenses/>

6. Invoice Submission Portal

Invoice Submission Portal

The invoice submission process is activated when an invoice is submitted through the Vendor Invoice Portal. Invoices submitted are automatically sent to the department being invoiced for review. Once the city department verifies its accuracy, the department will submit the invoice to Accounts Payable for payment processing. One final review and approval by the department who was invoiced is needed in order for a check to be issued. Checks are issued on Tuesday and Thursday.

How to submit invoices to the City of Pasadena?

Create an account: Visit the City's Invoice Submission website:
<https://invoice.cityofpasadena.net/> and select "Create Account"

Refer to the "[Invoice Submission Portal - Vendor User Guide](#)" for detailed instructions.

7. Acceptance of Conditions

By submitting a bid or proposal, each bidder or proposer expressly agrees to and accepts the following conditions:



- All parts of the Instructions to bidder or proposer and Specifications will become part of the Contract between the selected bidder or proposer and the City;
- The City may require whatever evidence is deemed necessary relative to the bidder or proposer financial stability and ability to complete this project;
- The City reserves the right to request further information from the bidder or proposer, either in writing or orally, to establish any stated qualifications;
- The City reserves the right to solely judge the bidder or proposer representations, and to solely determine whether the bidder or proposer is qualified to undertake the project pursuant to the City's Design and Performance Criteria set forth herein. The bidder or proposer, by submitting a bid, expressly acknowledges and agrees that the judgment of the City as to whether or not the bidder or proposer is qualified to perform the project, shall be final, binding and conclusive;
- The City reserves the right to reject all bids, waive any irregularity in any of the bids, or cancel or delay the project at any time;
- This bidding process does not commit the City to award any contract, and the City is not liable for any costs incurred by the bidder or proposer in the preparation and submission of a bid.

8. Pasadena Business

Local Business is defined in the Pasadena Municipal Code section:

4.08.020, O: "Local business" means a business with a fixed place of business located in the city.

To receive any preferences offered to a Pasadena business in this solicitation, a Pasadena business must be located within the City Boundary by the release date of this solicitation.

9. Pasadena Living Wage Ordinance

If this purchase includes a service, and the contract total is at \$25,000 or more, it is then subject to the City of Pasadena's Living Wage Ordinance, Pasadena Municipal Code Chapter 4.11. The ordinance requires that contractors providing labor or services to the City under contracts in excess of \$25,000 pay no less than the City's Living Wage to all employees who spend any of their time providing labor or delivering services to the City.

The selected contractor will be required to evidence compliance with the Living Wage Ordinance by submitting payroll records as requested by the City. Each record shall include the full name of each employee performing labor or providing services under the contract; job classification; rate of pay and benefit rate.

Failure to comply with the provisions of the Pasadena Living Wage Ordinance is grounds for termination of the contract and a basis for penalties as stated in Pasadena Municipal Code Chapter 4.11. Questions concerning the Pasadena Living Wage Ordinance should be directed to:



Finance Department
Purchasing Division
626-744-6755 - phone
626-744-6757 – fax

Please visit <https://ww5.cityofpasadena.net/finance/doing-business-with-the-city/> for the current calendar year Pasadena Living Wage rate.

10. PAYMENT OF A CITY-WIDE MINIMUM WAGE

If a vendor is providing labor for any subsequent contract resulting from this solicitation, they must comply with the City of Pasadena Minimum Wage as set forth in Chapter 5.02 of the Pasadena Municipal Code. Vendors are encouraged to review the City's minimum wage information guide at (<https://bit.ly/3o3SHMh>). The minimum wage ordinance may be found at [Pasadena Municipal Code](#).

11. Errors and Omissions

Bidders or Proposers shall not be allowed to take advantage of any errors or omissions in the Instructions to Bidders/General Instructions or Specifications/Scope of Work. Full instructions will be given if such error or omission is discovered and timely called to the attention of the City.

12. Patent Fees; Patent, Copyright, Trade Secret, and Trademark Fees

Each bidder or proposer shall include in the price bid any patent fees, royalties and charges on any patented article or process to be furnished or used in the prosecution of the Work.

13. Taxes

Price bid or Price Proposals shall include all federal, state, local and other taxes.

14. Certificate of Insurance

Proof of insurance is not required to be submitted with your bid/proposal, but will be required prior to the City's award of the contract. Refer to the Insurance requirements in the "Insurance Requirements" section of this document.

15. REQUEST FOR TAXPAYER IDENTIFICATION NUMBER AND CERTIFICATION (IRS Form W-9)

The winning proposal/bid may be required to submit a completed and signed [IRS Form W-9](#). Failure to submit this form may result in the response being deemed non-responsive.

Link: <https://www.irs.gov/pub/irs-pdf/fw9.pdf>

16. NO LIMITATIONS ON LIABILITY



Bidders acknowledge that they shall provide the goods and/or services without monetary limitations on liability. If Bidders take exception to this requirement, Bidders shall expressly state any exceptions, including the proposed limits of liability, (a) in detail; (b) as a separate line item; and (c) not part of any form documents submitted. Bidders acknowledge that any exceptions may result in a finding of non-responsiveness.

Proposers acknowledge that they shall provide the goods and/or services without monetary limitations on liability. Proposers acknowledge that any exceptions may result in a finding of non-responsiveness.

17. Recycled Product Procurement Mandates Pertaining to Local Governments [Public Contract Code Sections 22150 - 22154]

This section is only applied when buying paper products.

Beginning January 1, 2022, SB 1383 requires jurisdictions (cities, counties, cities and counties, or special districts that provide solid waste collection services) to purchase recycled-content paper products that are recyclable.

SB 1383 builds upon existing laws that require jurisdictions to purchase products that contain minimum recycled content, and adds additional requirements on product recyclability and recordkeeping.

All vendors providing Paper Products and Printing and Writing Paper shall:

- Provide products that contain no less than 30% minimum recycled content and recyclability (described in further detail in State of California, [Public Contract Code Sections 22150-22154](#), under the sections “Recycled-Content Requirements” and “Recyclability Requirements”).
- Provide a written certification and other verification from product vendors, as applicable, certifying that the products meet the recycled-content and recyclability requirements.

18. AVAILABILITY OF FUNDS

The provisions of this Contract relating to payment for products or services shall become effective when funds assigned for the purpose of compensating the Contractor as herein provided are actually available to for disbursement. The City shall be the sole judge and authority in determining the availability of funds under this Contract. If any action is taken by the City, any state agency, Federal department or any other agency to suspend, decrease, or terminate its fiscal obligations under, or in connection with, this Contract, the City may amend, suspend, decrease, or terminate its obligations under, or in connection with, this Contract. In the event of termination, The City shall be liable for payment only for products provided or services rendered prior to the effective date of the termination, provided that such products or services were provided or performed in accordance with the provisions of this Contract.

19. Addenda

If any person contemplating submitting a proposal of the items or services listed herein is in doubt as to the true meaning of any part of this RFP, he/she may submit a question through the City's [eProcurement Portal](#) Q&A section for an interpretation or correction thereof.



Any interpretation or correction of City specifications will be made only by addendum, duly issued by the City representative(s) identified in this solicitation, above. Addenda (if any) shall be made available on the City's eProcurement system, and sent to each vendor included on the "Followers" list in the City's eProcurement system. A vendor's failure to address the requirements of any and all addenda may result in the response (proposal or bid, or alike) not being considered. If the City determines that a time extension is required for the proposal, the City will issue an addendum that will give the new submission date. The vendor is responsible to register on the City's eProcurement Portal and follow the project named Design-Build Services for Solar and Energy Storage Installations at Category 1 City-Owned Properties in order to be included in the "Followers" list in the City's eProcurement system to insure they receive all documents including addendums which are available as a download.

The City reserves the right to change any part of these Instructions to PROPOSERS and Specifications any time prior to Deadline for Submissions. Any changes shall be in the form of addenda and will become a part of the Proposal documents and of the contract.

Addenda shall be acknowledged via the City's eProcurement Portal. Proposers can view a list of addenda released by the City by clicking on "Addenda & Notices". Proposers must acknowledge each Addenda by following the instructions on "Addenda Confirmation" section.

20. Accessibility Compliance Requirements

1. General Compliance

In accordance with Title II of the Americans with Disabilities Act of 1990 (ADA), Section 504 of the Rehabilitation Act of 1973, and all other applicable federal, state, and local disability rights laws, including the California Building Code (CBC) and California Code of Regulations Title 24, the City of Pasadena requires that all services, programs, activities, and facilities provided or utilized under this contract be fully accessible to individuals with disabilities.

The selected Contractor agrees to ensure that all work performed, and all services, programs, or activities provided under this contract comply with the requirements of Title II of the ADA and related laws. This includes, but is not limited to design, construction, communication, technology, and program delivery compliance with:

- The ADA and its implementing regulations (28 CFR Part 35 and Part 36);
- The 2010 ADA Standards for Accessible Design;
- The U.S. Access Board's Public Rights-of-Way Accessibility Guidelines (PROWAG), as amended;
- Section 504 of the Rehabilitation Act of 1973;
- California Government Code § 4450 et seq.;
- California Code of Regulations (CCR), Title 24, including Chapter 11B of the California Building Code governing accessibility to public accommodations and commercial facilities;
- Any other relevant federal, state, or local regulations concerning accessibility and nondiscrimination.

These requirements apply to all aspects of the Contractor's work, including but not limited to project or program design, facility access, pedestrian pathways, public right-of-way improvements, communications, and digital content or services.

2. Applicability of Accessibility Requirements

Accessibility compliance requirements apply when scope of work includes:



- Digital deliverables (i.e. websites, web applications, mobile applications, electronic documents, multimedia content)
- Physical infrastructure (i.e public facilities, pedestrian pathways, rights-of-way, shared use paths)
- Communication and program delivery (i.e. public meetings, outreach materials, surveys, customer service and payment platforms)
- Technology procurement or development (software, hardware, ICT systems)

If any portion of the work involves these elements, the Contractor must ensure full compliance with applicable accessibility standards.

3. Digital and Electronic Content

For all digital deliverables (including websites, documents, and applications), the Contractor shall ensure conformance with, at minimum:

- Web Content Accessibility Guidelines (WCAG) 2.1, Level AA, [as amended\[GS1\]](#) ; and
- Section 508 of the Rehabilitation Act (29 U.S.C. § 794d), where applicable.

All digital materials must undergo both automated and manual accessibility testing, including usability reviews by individuals representing a wide range of functional disability types (e.g., visual, auditory, cognitive, motor), and, if required, remediated prior to final acceptance. Testing must include compatibility with commonly used assistive technologies (e.g., JAWS, NVDA, VoiceOver, ZoomText, Dragon NaturallySpeaking). The Contractor must provide documentation such as Voluntary Product Accessibility Template (VPAT) or equivalent Accessibility Conformance Report (ACR), detailing compliance and describing the testing methodology.

4. Public Rights-of-Way Accessibility (PROWAG)

Any design, construction, or alteration involving pedestrian facilities, sidewalks, curb ramps, crosswalks, or public rights-of-way must conform to the latest applicable version of the U.S. Access Board's Public Rights-of-Way Accessibility Guidelines (PROWAG), as adopted by the U.S. Department of Justice, Department of Transportation, or other relevant authority.

5. Corrective Action and Liability

The Contractor shall be held responsible for correcting any noncompliant work or deliverables identified by the City of Pasadena or any enforcement agency, at no additional cost. The City of Pasadena reserves the right to withhold payment, suspend work, or terminate the contract for failure to meet accessibility requirements.

The Contractor shall indemnify and hold harmless the City of Pasadena, its officers, agents, and employees from any claims, damages, or liabilities arising from noncompliance with applicable accessibility laws or guidelines.

6. Certification of Compliance

By submitting a proposal, the Contractor certifies that it has reviewed and will comply fully with all applicable federal, state, and local accessibility laws, including the ADA, CBC, Title 24, and PROWAG, and will ensure that all subcontractors do the same.



5. City Requirements (Continued)

There are items included in the section named Submittals/Checklist of these specifications which a bidder or proposer must complete or submit to establish compliance with a number of City requirements, including, but not limited to, acknowledgements, proposal components, certifications, required forms, and other supporting documentation. These items and their instructions should be considered an integral part of the specifications, and failure to complete or submit the required items may be grounds, in the sole discretion of the City, for rejection of any bidder or proposer.

1. CONSTRUCTION AND DEMOLITION WASTE MANAGEMENT ORDINANCE

Construction and Demolition Waste Management Ordinance - In addition to complying with all applicable federal, state and local laws and regulations, the Contractor shall take note of the specific requirements of the Construction and Demolition Waste Management Ordinance, Pasadena Municipal Code Chapter 8.62. The Contractor shall comply with all provisions of the Ordinance, as a material part of the work under this Contract in order to divert a minimum of 75% of the construction and demolition debris resulting from the work. The Waste Management Plan required by the Ordinance shall be submitted no later than fifteen (15) calendar days after the Contract award.

Pasadena has partnered with Green Halo Systems to receive and keep track of the construction and demolition waste management documents.

The Contractor shall not commence work until (1) the invoice payment has been made for both the Performance Security Deposit equal to 3% of the project value not to exceed \$30,000, and the non-refundable Administrative Review Fee based on the City's General Fee Schedule available online at: www.cityofpasadena.net/finance/general-fund/fees-tax-schedules; and (2) the Waste Management Plan has been submitted through Green Halo and approved by the City's waste management compliance official.

The Contractor shall be required to certify compliance with the Construction and Demolition Waste Management Ordinance and provide required documentation during and at the end of the contract term. The refund of the Performance Security Deposit is subject to this compliance.

The cost to comply with the City's Construction and Demolition Waste Management Ordinance shall be included in the unit or lump sum prices for the applicable items of work listed in the Bidder's Proposal and no additional compensation will be allowed.

Failure to comply with any provisions of the Construction and Demolition Waste Management Ordinance, Pasadena Municipal Code Chapter 8.62 may result in forfeiture of the Performance Security Deposit.

Instructions

The contractor awarded the project will receive an invoice to pay the C&D administrative fee and C&D performance security deposit and an email with instructions to activate an account with Green Halo, complete the C&D plan and submit the weigh tickets of the receipt for the project.



To receive the Administrative Fee and C&D Performance Security Deposit Invoice and instructions to complete the C&D requirements in Green Halo, send an email to canddrecycling@cityofpasadena.net with the following information.

- Project name
- Contract Number
- Email account of the person that will be assigned as the account holder in the Green Halo

For additional information visit the Construction and Demolition Debris Recycling webpage www.cityofpasadena.net/public-works/engineering-and-construction/construction-and-demolition-debris-recycling/

2. Construction During the Period of November 15 through January 3

Attention is directed to Chapter 12.24 of the PMC, Excavations, and the Board of Directors (City Council) Policy Statement in Motion 25405 dated September 5, 1967. In general, all streets shall be free and clear of excavations and other construction during the period of November 15th through January 3rd for business districts, and December 15th through January 3rd for other areas. Accordingly, the Contractor will be required to shut down construction operations which would impede traffic movement during this period unless otherwise directed by the Engineer in emergency situations. Any existing excavations shall be backfilled, compacted, and temporarily repaved before the shutdown date. Bidders should reflect any costs of such shutdown in the various items of the Bidder's Proposal, and no additional payment will be allowed therefor. No time will be charged against the contract time for operations which are shut down in accordance with this section. A map showing the appropriate shutdown period for all locations in the City is available at the public counter of the City's Permit Center at 175 Garfield Avenue, Pasadena, 91101.

3. Stormwater Management and Discharge Control

In addition to complying with all applicable federal, state and local laws and regulations, the Contractor shall take note of the specific requirements of the Stormwater Management and Discharge Control, Pasadena Municipal Code Chapter 8.70. The Contractor shall comply with all provisions of the Stormwater Management and Discharge Control Ordinance, also known as NPDES Requirements, as a material part of the work under this Contract.

4. NPDES Requirements

In addition, the Contractor shall adhere to NPDES (National Pollution Discharge Elimination System) Best Management Practices to prevent deleterious materials or pollutants from entering the City or county storm drain systems, including, but not limited to implementing the Best Management Practices specified below, and the Contractor shall comply with all directions of the City in this regard during construction:

The following shall be implemented:



1. Handle, store, and dispose of materials properly.
2. Avoid excavation and grading activities during wet weather.
3. Construct diversion dikes and drainage swales around working sites.
4. Cover stockpiles and excavated soil with secured tarps or plastic sheeting.
5. Develop and implement erosion control plans (if applicable).
6. Check and repair leaking equipment away from construction sites.
7. Designate a location away from storm drains for refueling.
8. Cover and seal catch basins if work in their vicinity may allow debris or deleterious liquids to enter.
9. Use vacuum with all concrete sawing operations.
10. Never wash excess material from aggregate, concrete, or equipment onto a street.
11. Catch drips from paving equipment with drip pans or absorbent material.
12. Clean up all spills using dry methods.

5. STANDARD SPECIFICATIONS

In connection with contracts related to the subject "Bidder's Proposal," and except as otherwise provided below, all work shall be done in accordance with the provisions of the 2018 edition of "STANDARD SPECIFICATIONS FOR PUBLIC WORKS CONSTRUCTION" (commonly known as the "GREENBOOK"), Including Supplements, prepared and promulgated by Public Works Standards, Inc., a mutual benefit corporation. The Pasadena Department of Public Works has published a booklet titled, "SUPPLEMENTS AND MODIFICATIONS TO THE 'GREENBOOK' (STANDARD SPECIFICATIONS FOR PUBLIC WORKS CONSTRUCTION)" dated September 2006, hereinafter referred to as the Pasadena Supplements. The provisions of these Specifications and the Pasadena Supplements shall apply and take precedence over the Greenbook, in that order of precedence. The Pasadena Supplements and the "Greenbook" are available online at: <https://www.cityofpasadena.net/public-works/wp-content/uploads/sites/29/Pasadena-Recurring-Supplements-2023.pdf?v=1684796778799>. All references in these Specifications to "Standard Specifications" shall mean the Pasadena Supplements and the Greenbook, taken together.

6. PAYMENT

Section 9-3 of the "STANDARD SPECIFICATION FOR PUBLIC WORKS CONSTRUCTION" is hereby replaced with the following:

Payment shall be made based on satisfactorily completed and accepted milestones and progress of the work, in accordance with the terms of the final contract.

The selected Proposer shall submit invoices only for work performed and accepted by the City. Each invoice shall be supported by sufficient documentation to demonstrate completion of the applicable milestone, deliverable, or portion of work, as required by the City.



For site evaluation, design, permitting, and other pre-construction deliverables, payment shall be made based on accepted milestone submittals identified in the final contract.

For procurement, construction, installation, interconnection, and commissioning work, payment may be made based on progress of the work and an approved schedule of values, subject to City review and approval and any retention requirements set forth in the final contract.

If operations, maintenance, and monitoring services are included in the awarded contract, payment for such services shall be made only for services actually performed after Final Acceptance of the applicable completed improvements and in accordance with the final contract.

Final payment shall be contingent upon the City's acceptance of all required closeout deliverables and satisfactory completion of the awarded scope in accordance with the final contract.

No payment shall constitute acceptance of defective or incomplete work, and the City may withhold payment as permitted by the final contract for disputed amounts, incomplete deliverables, defective work, failure to provide required documentation, or other noncompliance with contract requirements.

7. *CONTRACT BONDS*

No Proposal Security Bond is required.

No Payment Bond or Performance Bond is required at the time of proposal submission or upon contract execution for non-construction services, including site evaluation, design, permitting, and implementation planning.

Before any construction work is authorized to begin, the selected Proposer shall provide payment and performance bonds in the amount required by the final contract for the applicable construction scope.

If the authorized construction scope increases, or if construction overlaps with other authorized work, the City may require the bond amount to be increased accordingly.

8. *Local Preference (Continued)*



The City of Pasadena is committed to promoting the economic health and well-being of its residents. To this end, Contractor agrees to recruit Pasadena residents initially and to give them preference, if all other factors are equal, for any new positions which result from the performance of this Contract and which are performed within the City. The Contractor will be required to make good-faith effort to hire Pasadena residents for all new hires, including subcontractor new hires. A good-faith effort will include requests to unions or community organizations designated by City to provide a list of qualified Pasadena residents. If qualified candidates are available, Contractor will conduct interviews with assistance of City and union/community organizations. Residents are individuals who are, and have been one year prior to the effective date of the contract, residents of the City of Pasadena. Submission to the City of documentation of requests and interviews will constitute proof of a good-faith effort. Interviews of Pasadena residents, if conducted, shall be completed and documentation submitted to the City prior to commencement of Contract work.



6. Insurance Requirements

1. *Insurance Requirements*

SEE ATTACHED INSURANCE REQUIREMENTS



7. Scope of Work

1. *Scope of Work Overview*

The selected Proposer shall provide Design-Build services for the evaluation, design, procurement, construction, and implementation of solar and energy storage installations at Category 1 City-owned properties, including ongoing operations and maintenance of the selected solar and energy storage improvements, as applicable to the awarded contract.

The Project includes Category 1 priority sites identified in this RFP that are intended to support completion by June 2028. The City's intent is to advance these sites on a priority basis, subject to feasibility, funding, and final award determinations.

Solar is desired at all sites, and energy storage is highly desired where feasible based on site-specific conditions, technical constraints, cost, and City direction.

The selected Proposer shall evaluate existing EV charging infrastructure and incorporate provisions necessary to support future EV charging expansion, as applicable to each site and consistent with the City's electrification objectives.

Services shall include site evaluation and feasibility assessment, engineering and design, permitting, procurement of equipment and materials, construction, installation, interconnection, commissioning, stakeholder engagement support, and ongoing operations and maintenance of the selected solar and energy storage improvements.

The site capacities identified in this RFP are estimates only and are provided for planning and proposal purposes. Final system size, configuration, and inclusion of energy storage will be determined based on site-specific evaluation, design development, feasibility, cost, and City direction.

Award of Contract(s)

The City reserves the right to award one contract, multiple contracts, by individual site, by combination of sites, or in whole, as determined to be in the best interest of the City. Proposers may submit proposals for any individual site or any combination of sites identified in this RFP. Proposers will be evaluated only for the sites included in their proposals.

The City reserves the right, in its sole discretion, to:

- award a single contract for all services and sites contemplated under this RFP;
- award multiple contracts;
- award contracts by individual site;
- award contracts for any combination of sites; or
- decline to award any portion of the work described in this RFP.

2. *Project Sites*



Name of Site	Address	kW
Allendale Library	1130 S. Marengo Ave.	57
Hamilton Park	3680 Cartwright St.	223
Jackie Robinson Community Center	1020 N. Fair Oaks Ave.	225
La Pintoresca Branch Library	1355 N. Raymond Ave	58
Lamanda Park Library	140 S. Altadena Dr.	148
Linda Vista Branch Library	1281 Bryant St.	44
Robinson Park and Recreation Center	1081 N. Fair Oaks Ave.	443
San Rafael Branch Library	1240 Nithsdale Rd.	22
Victory Park (south parking lot)	2925 E. Sierra Madre Blvd	606
Washington Park	700 E. Washington Blvd.	128
Central Library	285 E. Walnut St.	319
Glenarm Power Plant	72 E Glenarm St	170
Madison Parking Lot	44 S. Madison Ave.	190
Total		2.6 MW

3. *Site Evaluation, Validation, and Feasibility Assessment*

The selected Proposer shall perform the site evaluation, validation, and feasibility assessment activities necessary to confirm existing conditions, verify site suitability, refine design assumptions, and support implementation of the Project for each site included in the awarded scope.

The Site Evaluation, Validation, and Feasibility Assessment shall assess the suitability of each site for solar and energy storage installations, taking into consideration site-specific conditions, technical constraints, operational impacts, interconnection requirements, cost, and City direction. Solar is desired at all sites, and energy storage is highly desired where feasible.

At a minimum, the Site Evaluation, Validation, and Feasibility Assessment shall address:

- available area and physical constraints;
- site access, staging, and constructability considerations;
- existing electrical infrastructure and interconnection considerations;
- structural, civil, drainage, and geotechnical considerations, as applicable;
- operational and maintenance access needs;
- permitting and code compliance considerations;
- existing EV charging infrastructure and provisions necessary to support future EV charging expansion, as applicable;
- major assumptions, constraints, opportunities, and risks that may affect Project scope, cost, schedule, or feasibility; and
- recommendations regarding the most suitable configuration and approach for each site.

As applicable to each site, the selected Proposer shall perform or provide:



- site survey and technical evaluation, including AutoCAD mapping, identification of proposed major equipment locations, and assessment of existing site conditions;
- structural assessment of roof-mounted installation areas, where applicable;
- geotechnical investigation and related civil evaluation for non-building-mounted installations, where applicable;
- electrical assessment, including preliminary single-line diagrams, evaluation of existing electrical infrastructure, and infrastructure sizing necessary to support the proposed solar and energy storage installation and applicable EV charging coordination;
- shading and production analysis, including 8760 production modeling based on site-specific shade conditions, where applicable;
- constructability analysis, including identification of site-specific obstacles, proposed mitigation strategies, and estimated schedule impacts or timelines;
- stakeholder engagement support, including participation in City-facilitated stakeholder engagement meetings and provision of technical support materials, renderings, or similar visual aids, as reasonably requested by the City; and
- delivery to the City of documentation of the results of the Site Evaluation, Validation, and Feasibility Assessment, and use of those findings to support engineering and design development, permitting, cost development, construction planning, and refinement of the final implementation approach for each site.

4. Engineering, Design, Permitting, and Implementation Planning

The selected Proposer shall provide all engineering, design, permitting, and implementation planning services necessary to develop and deliver the Project for the sites included in the awarded contract.

Services shall include preparation and advancement of the engineering and design for solar and energy storage installations, taking into consideration site-specific conditions, operational needs, maintainability, long-term performance, interconnection requirements, EV charging infrastructure make-ready design and coordination for future installation, constructability, cost, and City direction. Solar is desired at all sites, and energy storage is highly desired where feasible.

The City's design and performance criteria shall require a minimum productive life of twenty-five (25) years, supported by appropriate material selection, equipment warranties, industry-standard installation practices, and prudent operations and maintenance programs.

Upon receipt of Notice to Proceed, the selected Proposer shall be responsible for producing professional engineering designs, stamped and sealed by a licensed Professional Engineer, where required, and suitable for permitting and construction.

At a minimum, the selected Proposer shall provide:



- all required engineering studies, analyses, calculations, drawings, specifications, and supporting technical documentation;
- site-specific layout development and equipment configuration;
- electrical, civil, structural, and other discipline coordination necessary for the Project;
- design coordination with existing site conditions, City requirements, and applicable utility and interconnection requirements;
- refinement of project scope, equipment selection, and design assumptions based on findings from the Site Evaluation, Validation, and Feasibility Assessment;
- permitting support, including preparation of materials, drawings, calculations, applications, and responses necessary to obtain required approvals;
- design and planning support necessary to coordinate the awarded sites and site-specific implementation approach; and
- implementation planning necessary to support procurement, construction, installation, interconnection, commissioning, and ongoing operations and maintenance.

The selected Proposer shall also support pricing, cost development, and implementation planning necessary to advance the awarded contract. This shall include development and maintenance of site-specific implementation assumptions, sequencing, schedule updates, procurement strategies, long-lead equipment considerations, and evaluation of implementation alternatives. The selected Proposer shall also identify any available procurement options that could support schedule objectives, equipment availability, cost control, or other implementation priorities identified by the City.

The selected Proposer shall use this work to support design development, permitting, procurement, construction execution, commissioning, and completion by June 2028, unless otherwise approved by the City in writing.

Design Review Milestones

The selected Proposer shall submit design packages to PWP for review at the 50%, 90%, and 100% Construction Documents completion milestones, or at such other design milestones as may be approved by the City. Following PWP review of the 100% Construction Documents submittal, the selected Proposer shall provide final stamped and sealed plans, where required, suitable for plan check, permitting, and construction.

Permitting and Agency Coordination

The selected Proposer shall be responsible for managing the permitting process for the Project, including preparation and submission of required applications, supporting documents, and revisions. The selected Proposer shall also be responsible for responding to Permit Center comments and for providing necessary technical information, studies, and support materials related to California Environmental Quality Act (CEQA) compliance and mitigation, as applicable.

Interconnection and Utility Coordination



The selected Proposer shall be responsible for coordinating utility service and interconnection requirements with PWP and other applicable service providers. At a minimum, the selected Proposer shall evaluate and support applications, technical documentation, and coordination necessary for new or upgraded electrical services and interconnection approvals required for the awarded contract.

The selected Proposer shall obtain required system approvals prior to submitting plans for permitting, as applicable.

EV Infrastructure Coordination

The selected Proposer shall evaluate existing EV charging infrastructure and incorporate provisions necessary to support future EV charging expansion, as applicable to each site. This shall include consideration of electrical capacity, service configuration, distribution equipment, conduit pathways, make-ready infrastructure, interconnection requirements, and integration of solar and energy storage systems in a manner that supports the City's electrification objectives.

Stakeholder Engagement Support

The selected Proposer shall participate in City-facilitated stakeholder engagement meetings throughout the Project and shall provide technical support, presentations, renderings, and other supporting materials as reasonably requested by the City.

Technical Design Requirements

The selected Proposer shall ensure that the Project design incorporates the following requirements, as applicable:

- coordination with existing site conditions and operational requirements;
- compliance with applicable federal, state, and local laws, codes, regulations, standards, and utility requirements;
- compliance, as applicable, with current editions of the National Electrical Code (NEC), ANSI, IEEE, NEMA, NECA, NRCA, UL, and other applicable industry standards;
- grounding and bonding in accordance with the NEC, manufacturer requirements, and applicable standards;
- mechanical design requirements appropriate to the proposed installation type and site conditions;
- wiring and conduit design requirements appropriate to the proposed system configuration, environment, and applicable codes and standards;
- electrical panels, meter sockets, transformers, and related electrical infrastructure requirements necessary to support the proposed solar and energy storage installations and any required interconnection;
- equipment and system labeling in accordance with applicable safety codes, standards, utility requirements, and manufacturer recommendations;
- all inverters shall meet UL1741SB and IEEE 2030.5;



- roof-mount design requirements, where applicable, including structural, waterproofing, attachment, and roofing coordination considerations;
- ground-mount design requirements, where applicable, including civil, geotechnical, drainage, structural, and site use considerations;
- appropriate metering, controls, communications, and integration features necessary to support operation of the installed systems;
- provisions necessary to support existing and future EV charging infrastructure, as applicable;
- design features necessary to support procurement, construction, installation, interconnection, commissioning, and ongoing operations and maintenance;
- minimum energy production and performance requirements, as established by the final contract and approved design criteria; and
- for each site where Energy Storage is included in the awarded scope, BESS sizing sufficient to support the full building load for a minimum duration of four (4) hours during utility outage conditions, together with site microgrid functionality, including island mode capability and the controls necessary to support safe and reliable operation during utility outages. The selected Proposer shall clearly identify the basis of battery sizing, the full building load assumptions used for design, and any limitations or conditions affecting the required four-hour outage performance.

EV Make-Ready Infrastructure means the electrical and physical infrastructure necessary to support the future installation, connection, and operation of electric vehicle charging equipment at a site, whether or not the charging equipment itself is furnished or installed as part of the Work. EV Make-Ready Infrastructure may include, as applicable, service capacity, distribution equipment capacity, panelboard or switchgear provisions, transformers, conduits, raceways, pull boxes, junction boxes, conductors, terminations, disconnects, overcurrent protection, communications pathways, equipment pads, mounting provisions, trenching, sleeves, labeling, and other supporting infrastructure necessary to accommodate current or future EV charger installation.

The selected Proposer shall review and incorporate the applicable requirements of the City's conceptual EV charger drawings provided as reference documents. The design shall include EV Make-Ready Infrastructure consistent with the conceptual drawings, site conditions, electrical capacity requirements, and the City's electrification objectives.

Unless otherwise expressly stated in the final contract, EV Make-Ready Infrastructure does not require the furnishing or installation of future EV chargers that are not part of the awarded scope, but shall include the supporting infrastructure necessary to accommodate such future charger installation, such as meter sockets, panel space for breakers, and the installation of the physical conduit run to the future EV charger location.

The selected Proposer shall be responsible for coordinating the design with all applicable requirements and for incorporating all design features necessary to support successful implementation of the awarded contract.



5. *Procurement, Construction, and Commissioning Services*

The selected Proposer shall furnish all labor, supervision, equipment, tools, materials, transportation, and other resources necessary to procure, construct, install, interconnect, test, and commission the awarded solar and energy storage installations in accordance with the final approved design, permit requirements, applicable laws, codes, regulations, standards, and the requirements of the final contract.

Procurement, construction, and commissioning services shall apply only to the sites included in the awarded contract.

Procurement and Construction Planning

The selected Proposer shall:

- procure all equipment, materials, and components necessary to execute the awarded contract in accordance with the permitted designs;
- secure all required approvals and permits necessary to perform the work, including applicable City of Pasadena and agency permits, prior to commencement of construction;
- develop and maintain a comprehensive construction, procurement, delivery, and installation schedule for the awarded sites; and
- coordinate all work with facility operations in order to minimize disruption to City services and site activities.

Construction Management and Execution

The selected Proposer shall:

- provide a dedicated full-time Project Manager for each site awarded, except as otherwise agreed by Owner, responsible for oversight of technical execution, material logistics, coordination, schedule management, and communication with PWP;
- submit regular progress updates, including weekly progress reports, in a format acceptable to PWP;
- perform all civil, structural, electrical, communications, controls, and related construction activities required by the approved design package;
- construct and install the solar and energy storage improvements in accordance with the awarded contract and final approved design;
- coordinate with the City, PWP, affected site users, utilities, agencies, inspectors, and other stakeholders as required during construction;
- develop, permit, and implement traffic control plans where required, including provision of all signage, barriers, and flagging personnel necessary for public safety and regulatory compliance; and
- protect existing facilities and site features during construction and restore any disturbed areas to equal or better condition.



Any damage to City property caused by the selected Proposer shall be repaired at no cost to the City.

The selected Proposer shall be responsible for constructing the Project in a manner that minimizes disruption to ongoing operations at each site and maintains safe access for City staff, the public, and other users, as applicable.

The selected Proposer shall perform the work in a manner that supports completion by June 2028, unless otherwise approved by the City in writing.

If the selected Proposer recommends any early procurement, equipment reservation, stockpiling, or similar strategy intended to support schedule objectives, equipment availability, cost control, or other implementation priorities identified by the City, the selected Proposer shall clearly identify the proposed approach, assumptions, risks, schedule implications, sourcing considerations, and any City decisions required to implement such strategy.

EV Infrastructure Coordination During Construction

The selected Proposer shall coordinate construction activities with planned EV charging infrastructure and shall implement the electrical, service, conduit, make-ready, and related provisions included in the approved design to support future EV charging installation, as applicable to each site and consistent with the City's electrification objectives.

Inspections and Safety Compliance

The selected Proposer shall coordinate all required inspections with the City Permit Center, PWP Electric Service Planning, and any other applicable agencies or authorities having jurisdiction. The City reserves the right to inspect the work at any time in accordance with the requirements of the final contract.

The selected Proposer shall finalize the arc flash study using field-verified conductor lengths and shall install permanent equipment labeling in accordance with applicable safety standards and final approved design requirements.

Commissioning and Closeout

The selected Proposer shall perform all required testing, start-up, and commissioning activities for the completed improvements included in the awarded contract.

Final Acceptance shall be contingent upon delivery of a complete Project Closeout Package for each site, which shall include, at a minimum:

- as-built drawings in AutoCAD and PDF format;
- equipment manuals;
- a complete component list, including applicable degradation or performance information;



- complete manufacturer warranty documentation for major equipment and systems, including, as applicable, photovoltaic modules, inverters, battery energy storage system components, controls and communications equipment, and other major electrical equipment integral to system performance, together with warranty certificates, coverage terms, effective dates, manufacturer or supplier contact information, claim procedures, and any required assignment, transfer, or registration documentation;
- a detailed operations and maintenance plan, including recommended preventive maintenance schedules and estimated annual maintenance costs;
- training materials and training support for City and PWP personnel; and
- other closeout documentation required by the final contract.

The selected Proposer shall also successfully complete a 7-day capacity test, or other approved performance verification process, demonstrating that the installed system meets the required performance criteria established for the Project.

6. Operations, Maintenance, and Monitoring Services

The selected Proposer shall provide operations, maintenance, monitoring, and system support services for the completed improvements included in the awarded contract for a period of five (5) years following Final Acceptance.

Operations and maintenance services shall include all labor, supervision, tools, equipment, materials, consumables, monitoring, reporting, and other resources necessary to support safe, reliable, and efficient operation of the installed solar and energy storage systems during the operations and maintenance term.

At a minimum, operations and maintenance services shall include:

- preventive maintenance in accordance with manufacturer recommendations, applicable standards, and the approved operations and maintenance plan;
- routine scheduled inspections and equipment servicing;
- a minimum of one (1) professional panel cleaning per year, to be performed between May 1 and June 30, unless otherwise approved by the City;
- thermal imaging diagnostics to identify and mitigate hot spots or other developing issues;
- switchgear cleaning and mechanical maintenance, as applicable;
- 24/7 remote monitoring to detect faults, diagnose system issues, and track system performance;
- provision of a cloud-based monitoring portal for PWP staff with access to real-time and historical system data;
- corrective maintenance, troubleshooting, repair, and replacement of failed or underperforming components, as applicable;
- coordination and administration of manufacturer warranty claims and related support;



- periodic reporting to the City regarding system condition, maintenance activities, performance, outages, and corrective actions, at intervals specified in the final contract;
- response services for system issues, alarms, faults, or performance deficiencies;
- support for maintaining interconnection, controls, communications, and applicable EV-related electrical infrastructure associated with the installed improvements; and
- other services necessary to maintain the facilities in proper operating condition in accordance with the final contract.

The selected Proposer shall provide the City with a detailed operations and maintenance plan for each site included in the awarded contract, including recommended preventive maintenance activities, maintenance intervals, response protocols, reporting requirements, and identification of any owner responsibilities.

All preventive maintenance and corrective maintenance service tickets shall be tracked and managed within PWP's Enterprise Asset Management system, in accordance with City requirements.

The selected Proposer shall act as the primary point of contact for administration of manufacturer warranty claims throughout the operations and maintenance term.

Operations and maintenance services shall be performed in a manner that minimizes disruption to City operations and maintains safe access for City staff, the public, and other users, as applicable.

The selected Proposer shall perform operations and maintenance services in a manner that supports reliable long-term operation of the installed systems and the City's broader electrification objectives.

7. General Project Requirements

The selected Proposer shall perform all services in a professional and workmanlike manner and in accordance with the requirements of this RFP, the final Contract, and all applicable federal, state, and local laws, codes, regulations, standards, and permitting requirements.

The City, through PWP, shall retain sole ownership of the completed solar and energy storage installations, including all operational control, outputs, products, environmental attributes, renewable energy credits, and associated services, unless otherwise expressly stated in the final contract.

Except as may be expressly provided in the final contract, PWP shall have no obligation to assign or provide to the selected Proposer any rebates, incentives, renewable energy credits, or other program-related benefits associated with the completed improvements.

The selected Proposer shall be responsible for coordinating the work with the City, PWP, affected site users, and other applicable stakeholders throughout performance of the awarded contract. The selected Proposer shall also be responsible for maintaining alignment with the approved schedule, milestone dates, and deliverable requirements established in the final contract.



Any material change to the Scope of Work, design basis, implementation assumptions, or approved implementation approach must be reviewed and approved in advance by PWP.

The selected Proposer shall be responsible for ensuring that all equipment, materials, systems, and installation methods furnished under the Project are suitable for the intended application and consistent with the approved design, applicable codes and standards, and the operational needs of the City.

8. Project Schedule, Deliverables, and Milestones

The selected Proposer shall develop, submit, and maintain a detailed Project schedule for the sites included in the awarded contract and shall provide all deliverables necessary to support site evaluation, design, permitting, cost development, construction, closeout, and operations and maintenance of the Project.

For the sites included in the awarded contract, the schedule shall demonstrate how the awarded scope will be completed by June 2028, unless otherwise approved by the City in writing.

At a minimum, the schedule shall identify major phases, milestone dates, durations, sequencing, and critical path activities for the awarded scope, including, as applicable:

- site evaluation, validation, and feasibility assessment;
- engineering and design development;
- permitting and agency review;
- utility coordination and interconnection approvals;
- procurement of equipment and long-lead materials;
- construction planning and mobilization;
- construction and installation activities;
- testing, start-up, and commissioning;
- training and closeout activities; and
- commencement of operations, maintenance, and monitoring services.

The selected Proposer shall update the Project schedule throughout performance of the work and shall promptly identify any actual or anticipated delays, impacts to milestone dates, or conditions that may affect timely completion of the awarded scope.

The selected Proposer shall coordinate scheduling with the City, PWP, affected site users, utility requirements, agency approvals, equipment availability, and other factors necessary to support timely implementation of the Project. If the City awards multiple contracts, each selected Proposer shall be responsible for developing and maintaining a schedule for its respective awarded scope and for coordinating, as reasonably requested by the City, with other contractors or stakeholders to minimize conflicts and support overall Project delivery.

At a minimum, the selected Proposer shall provide the following deliverables and milestone submittals, as applicable to the awarded contract and scope of work:



1. Site Evaluation, Validation, and Feasibility Deliverables

The selected Proposer shall provide a Site Evaluation, Validation, and Feasibility Report that includes, at a minimum, the following:

- project work plans, schedules, and coordination materials;
- site evaluation, validation, and feasibility assessment documentation for each site;
- technical studies, structural assessments, and supporting analyses required by the Scope of Work;
- preliminary cost estimates, schedule updates, and constructability input;
- value engineering recommendations and scope refinement support; and
- other site evaluation, validation, and implementation planning deliverables reasonably required by the City to evaluate the Project and support refinement of the implementation approach for each site.

2. Design Milestone Submittals

The selected Proposer shall submit design packages to PWP for review at the following milestones:

- 50% Construction Documents
- 90% Construction Documents
- 100% Construction Documents

Each design submittal shall include the drawings, calculations, narratives, studies, specifications, and other supporting documentation appropriate to the level of completion and sufficient for City review.

Following City approval of the 100% Construction Documents submittal, the selected Proposer shall provide final stamped and sealed plans and supporting documents suitable for plan check, permitting, and construction.

3. Permitting and Interconnection Deliverables

The selected Proposer shall prepare and submit all applications, supporting materials, studies, calculations, and revisions necessary to obtain required permits, approvals, and interconnection authorizations. Deliverables shall include responses to Permit Center comments, utility coordination materials, and any required supporting information related to environmental review, code compliance, and agency approvals.

4. Construction Phase Deliverables

During construction and implementation of the awarded contract, the selected Proposer shall provide:

- construction schedules and schedule updates;
- weekly progress reports, including progress photographs;
- inspection coordination materials;



- testing and commissioning documentation;
- training materials and training support for City and PWP personnel;
- punch list and corrective action documentation; and
- other construction administration and implementation deliverables required by the final contract.

5. Closeout Deliverables

For each completed site, the selected Proposer shall provide a complete Project Closeout Package, including, at a minimum:

- permit signoffs;
- Permission to Operate letter;
- Record Documents, including As-Built drawings in AutoCAD and PDF format;
- equipment operations and maintenance manuals;
- complete manufacturer warranty documentation for major equipment and systems, including, as applicable, photovoltaic modules, inverters, battery energy storage system components, controls and communications equipment, and other major electrical equipment integral to system performance, together with warranty certificates, coverage terms, effective dates, manufacturer or supplier contact information, claim procedures, and any required assignment, transfer, or registration documentation;
- a complete component list, including applicable degradation or performance information;
- a detailed operations and maintenance plan;
- recommended preventive maintenance schedules and estimated annual maintenance costs to be performed by the selected Proposer;
- final test results, commissioning records, and performance verification documentation; and
- any other closeout documentation required by the Contract Documents.

The selected Proposer shall also successfully complete a 7-day capacity test, or other approved performance verification process, demonstrating that the installed system meets the City's Design and Performance Criteria established for the Project.

Warranty and Correction Guarantee

See A201 Section 3.5 and Article 12 for Design-Builder's warranty and correction obligations.

6. Operations and Maintenance Deliverables

During the five (5) year operations and maintenance term, the selected Proposer shall provide:

- maintenance records and service documentation;



- preventive and corrective maintenance tracking information;
- performance monitoring and reporting information;
- warranty administration support documentation;
- operations and maintenance updates requested by the City; and
- other records and reports required by the final contract or City systems.

The City reserves the right to refine the format, content, timing, and level of detail of deliverables during contract negotiations and project implementation.

9. Special Conditions / Contract Terms

The City reserves the right to remove one or more sites from the awarded scope if, during site evaluation, design development, construction, or implementation, a site is determined by the City to be unviable, uneconomic, or otherwise unsuitable for further development.

Any resulting adjustment in compensation shall be addressed in accordance with the pricing structure, authorized work, and terms of the final contract.

No Obligation to Proceed with All Sites or Optional Scope

The City reserves the right to determine, in its sole discretion, whether to proceed with any individual site, any optional energy storage scope, or any other optional or modified scope of work.

Submission of pricing, design deliverables, site recommendations, or other Project information shall not obligate the City to authorize or proceed with procurement, construction, or operations and maintenance services for any site or optional scope.

Award or authorization of one site shall not obligate the City to proceed with any other site.

Inspections and Concealed Work

The City reserves the right to inspect any and all work performed under the Project.

Any work covered or concealed without required inspection or approval may be subject to uncovering, removal, or correction at the selected Proposer's expense, in accordance with the final contract.

Early Procurement Authorization

The selected Proposer shall not proceed with any early procurement, equipment reservation, stockpiling, or similar action intended to support schedule objectives, equipment availability, cost control, or other implementation priorities identified by the City unless expressly authorized by the City in writing.

Any recommendation by the selected Proposer regarding such actions shall clearly identify the proposed approach, assumptions, risks, schedule implications, sourcing considerations, and any City decisions required for implementation.

Compensation for Authorized Work Only



The City shall be obligated to compensate the selected Proposer only for work authorized in accordance with the final contract. No proposal submission, design development activity, pricing update, site evaluation activity, or other Project development activity shall, by itself, obligate the City to proceed with or compensate any work beyond the scope expressly authorized.

10. Anticipated Project Timeline

The following timeline is provided for planning purposes only and is intended to reflect the City's anticipated implementation approach for the sites included in this RFP.

Milestone	Estimated Timing
Contract Award / Execution	September 2026
Notice to Proceed	October 2026
Site Evaluation and Feasibility Assessment	November 2026 to January 2027
Design Development and Permitting	January 2027 to April 2027
Procurement and Construction Commencement	April 2027
Construction Substantial Completion	December 2027
Construction Completion / Commissioning	June 2028

The sites included in this RFP are priority sites intended to support completion by June 2028, unless otherwise approved by the City in writing.

The selected Proposer shall develop and maintain a detailed Project schedule for the sites included in the awarded contract in accordance with Section 7.8, Project Schedule, Deliverables, and Milestones.

If the City awards multiple contracts, each selected Proposer shall be responsible for developing and maintaining a schedule for its respective awarded scope in accordance with the terms of the final contract.



8. Sample Contract

1. *Contract Duration*

The Contract shall become effective on the date it is fully executed by the City and shall remain in effect until completion of the awarded scope of work and expiration of any applicable operations, maintenance, and monitoring term, unless earlier terminated in accordance with its terms.

Work under the Contract shall commence only upon issuance of a written Notice to Proceed by the City.

For the sites included in the awarded Contract, all design, permitting, procurement, construction, installation, interconnection, and commissioning activities required under the Contract shall be completed by June 2028, unless otherwise approved by the City in writing.

If operations, maintenance, and monitoring services are included in the awarded Contract, such services shall commence upon Final Acceptance of the applicable completed improvements for each site and shall continue for a period of five (5) years for that site, unless otherwise provided in the Contract.

2. *SAMPLE CONTRACT*

A standard form of the contract the successful vendor will be required to enter into with the City is attached ([Attachments](#)) by addendum and will be incorporated by reference incorporated herein and made part of this solicitation.



9. Price Proposal

Each Proposer must submit a Price Proposal containing all costs associated with the technical proposal. The cost proposal shall describe both the total and the detailed price for which the consultant will commit to complete the total scope of work and end products. The table(s) below is intended to be a sample. Proposers may add necessary line items provided they are in compliance with instructions in this RFP for "Cost Proposals." The cost proposal detail shall describe costs for each professional's time, for the completion of each proposed task, and for materials and supplies.

INSTRUCTIONS:

Each Proposer must submit a Price Proposal containing all costs associated with the technical proposal. Using the attached Price Proposal in this RFP, provide Proposer's lump-sum price and/or unit price for performing all services and work called for in the SCOPE OF WORK. The Proposer's price shall include, without limitation:

1. all designs, equipment, materials, labor, insurance and bond premiums, home office, jobsite, and other overhead, profit and services relating to the Proposer's performance of its obligations under the Contract (including all work, equipment, materials, labor, and services provided by subcontractors and intellectual property rights necessary to perform the work);
2. performance of each and every portion of the work
3. all costs of obtaining Government approvals other than Government approvals that are the responsibility of the City of Pasadena;
4. all costs of compliance with Government rules, except to the extent such compliance is the responsibility of the City of Pasadena;
5. all taxes, duties, permits, and other fees or royalties incident to the performance of the SCOPE OF WORK;
6. payment of all salaries, wages, benefits, and expenses of the Proposer's employees;
7. compensation for all risks, liabilities, and contingencies assigned to the Proposer; and
8. all other costs needed or incurred to complete the Project.

CATEGORY 1 CAPITAL PRICING - SOLAR PRICE



Line Item	Description	Unit of Measure	Unit Cost	No Bid
1	Fire Station #38.....1150 Linda Vista Ave., Pasadena, CA 91103	LS		
2	Allendale Library.....1130 S. Marengo Ave., Pasadena, CA 91106	LS		
3	Linda Vista Branch Library.....1281 Bryant St., Pasadena, CA 91103	LS		
4	San Rafael Branch Library.....1240 Nithsdale Rd., Pasadena, CA 91103	LS		
5	Jackie Robinson Community Center.....1020 N. Fair Oaks Ave., Pasadena, CA 91103	LS		
6	Lamanda Park Library.....140 S. Altadena Dr., Pasadena, CA 91107	LS		
7	Villa Parke Branch Library.....363 E. Villa St., Pasadena, CA 91101	LS		
8	Hamilton Park.....3680 Cartwright St., Pasadena, CA 91107	LS		
9	Memorial Park.....85 E. Holly St., Pasadena, CA 91103	LS		
10	Playhouse Village Park.....701 Union St., Pasadena, CA 91101	LS		
11	Robinson Park and Recreation Center.....1081 N. Fair Oaks Ave., Pasadena, CA 91103	LS		
12	Washington Park.....700 E. Washington Blvd., Pasadena, CA 91104	LS		
13	La Pintoresca Branch Library.....1355 N. Raymond Ave., Pasadena, CA 91103	LS		
14	Victory Park.....2925 E. Sierra Madre Blvd., Pasadena, CA 91107	LS		
15	City Yards.....311 W. Mountain St., Pasadena, CA 91103	LS		

CATEGORY 1 CAPITAL PRICING - ADDITIVE BESS PRICE



Line Item	Description	Unit of Measure	Unit Cost	No Bid
1	Fire Station #38.....1150 Linda Vista Ave., Pasadena, CA 91103	LS		
2	Allendale Library.....1130 S. Marengo Ave., Pasadena, CA 91106	LS		
3	Linda Vista Branch Library.....1281 Bryant St., Pasadena, CA 91103	LS		
4	San Rafael Branch Library.....1240 Nithsdale Rd., Pasadena, CA 91103	LS		
5	Jackie Robinson Community Center.....1020 N. Fair Oaks Ave., Pasadena, CA 91103	LS		
6	Lamanda Park Library.....140 S. Altadena Dr., Pasadena, CA 91107	LS		
7	Villa Parke Branch Library.....363 E. Villa St., Pasadena, CA 91101	LS		
8	Hamilton Park.....3680 Cartwright St., Pasadena, CA 91107	LS		
9	Memorial Park.....85 E. Holly St., Pasadena, CA 91103	LS		
10	Playhouse Village Park.....701 Union St., Pasadena, CA 91101	LS		
11	Robinson Park and Recreation Center.....1081 N. Fair Oaks Ave., Pasadena, CA 91103	LS		
12	Washington Park.....700 E. Washington Blvd., Pasadena, CA 91104	LS		
13	La Pintoresca Branch Library.....1355 N. Raymond Ave., Pasadena, CA 91103	LS		
14	Victory Park.....2925 E. Sierra Madre Blvd., Pasadena, CA 91107	LS		
15	City Yards.....311 W. Mountain St., Pasadena, CA 91103	LS		

CATEGORY 1 O&M PRICING - ANNUAL SOLAR OM PRICE



Line Item	Description	Unit of Measure	Unit Cost	No Bid
1	Fire Station #38.....1150 Linda Vista Ave., Pasadena, CA 91103	Yearly		
2	Allendale Library.....1130 S. Marengo Ave., Pasadena, CA 91106	Yearly		
3	Linda Vista Branch Library.....1281 Bryant St., Pasadena, CA 91103	Yearly		
4	San Rafael Branch Library.....1240 Nithsdale Rd., Pasadena, CA 91103	Yearly		
5	Jackie Robinson Community Center.....1020 N. Fair Oaks Ave., Pasadena, CA 91103	Yearly		
6	Lamanda Park Library.....140 S. Altadena Dr., Pasadena, CA 91107	Yearly		
7	Villa Parke Branch Library.....363 E. Villa St., Pasadena, CA 91101	Yearly		
8	Hamilton Park.....3680 Cartwright St., Pasadena, CA 91107	Yearly		
9	Memorial Park.....85 E. Holly St., Pasadena, CA 91103	Yearly		
10	Playhouse Village Park.....701 Union St., Pasadena, CA 91101	Yearly		
11	Robinson Park and Recreation Center.....1081 N. Fair Oaks Ave., Pasadena, CA 91103	Yearly		
12	Washington Park.....700 E. Washington Blvd., Pasadena, CA 91104	Yearly		
13	La Pintoresca Branch Library.....1355 N. Raymond Ave., Pasadena, CA 91103	Yearly		
14	Victory Park.....2925 E. Sierra Madre Blvd., Pasadena, CA 91107	Yearly		
15	City Yards.....311 W. Mountain St., Pasadena, CA 91103	Yearly		

CATEGORY 1 O&M PRICING - ANNUAL ADDITIVE BESS OM



Line Item	Description	Unit of Measure	Unit Cost	No Bid
1	Fire Station #38.....1150 Linda Vista Ave., Pasadena, CA 91103	Yearly		
2	Allendale Library.....1130 S. Marengo Ave., Pasadena, CA 91106	Yearly		
3	Linda Vista Branch Library.....1281 Bryant St., Pasadena, CA 91103	Yearly		
4	San Rafael Branch Library.....1240 Nithsdale Rd., Pasadena, CA 91103	Yearly		
5	Jackie Robinson Community Center.....1020 N. Fair Oaks Ave., Pasadena, CA 91103	Yearly		
6	Lamanda Park Library.....140 S. Altadena Dr., Pasadena, CA 91107	Yearly		
7	Villa Parke Branch Library.....363 E. Villa St., Pasadena, CA 91101	Yearly		
8	Hamilton Park.....3680 Cartwright St., Pasadena, CA 91107	Yearly		
9	Memorial Park.....85 E. Holly St., Pasadena, CA 91103	Yearly		
10	Playhouse Village Park.....701 Union St., Pasadena, CA 91101	Yearly		
11	Robinson Park and Recreation Center.....1081 N. Fair Oaks Ave., Pasadena, CA 91103	Yearly		
12	Washington Park.....700 E. Washington Blvd., Pasadena, CA 91104	Yearly		
13	La Pintoresca Branch Library.....1355 N. Raymond Ave., Pasadena, CA 91103	Yearly		
14	Victory Park.....2925 E. Sierra Madre Blvd., Pasadena, CA 91107	Yearly		
15	City Yards.....311 W. Mountain St., Pasadena, CA 91103	Yearly		



10. Review and Award Recommendation Process

1. *Review and Award*

Responsive proposals will be reviewed and evaluated in accordance with the criteria set forth in this RFP. The City will evaluate proposals in two phases.

Proposers may submit proposals for any individual site or any combination of sites identified in this RFP. Proposals will be evaluated only for the sites included in the proposer's submission. Final award recommendations may be made by individual site, by combination of sites, by category, or in whole, as determined to be in the best interest of the City.

In Phase I, the City will evaluate the written proposal submissions for each site included in the proposer's submission, including the Statement of Qualifications and Experience, Technical Proposal, and Price Proposal, in accordance with the applicable evaluation criteria and point allocations set forth in this RFP. Any applicable Local Pasadena Business preference points and Small or Micro-Business preference points shall be applied at the site level as part of the Phase I scoring for each site.

For each site, only up to the top three (3) ranked proposers that receive a minimum Phase I score of seventy (70) points shall advance to Phase II for that site. If fewer than three proposers for a given site receive a Phase I score of at least seventy (70) points, only those proposers meeting the minimum score shall advance for that site.

In Phase II, shortlisted proposers shall participate in a mandatory interview. A proposer shortlisted for more than one site will participate in one interview, and the interview may address all sites for which the proposer has been shortlisted.

Phase II interview scores will be added to the proposer's Phase I score for each applicable site to determine the final score for that site. Final ranking and award recommendation will be based on site-specific best value, using the evaluation criteria set forth in this RFP.

The City reserves the right to recommend award of one site, multiple sites, or no sites to any proposer, as determined to be in the best interest of the City.

For City Departments, any contract resulting from this RFP with a value of more than \$75,000 shall not be effective until approved by the City Manager. Any contract resulting from this RFP with a value of more than \$250,000 shall not be effective until approved by the City Council.

For Operating Companies (such as the Rose Bowl): Any contract resulting from this RFP, if \$250,000 or less, shall not be effective until approved by the top executive official of the Operating Company. Any contract resulting from this RFP, if more than \$250,000, shall not be effective until approved by the Board of the Operating Company (including the Pasadena Rental Housing Board, Rose Bowl Operating Company, Pasadena Center Operating Company, or Pasadena Media).

2. *Separate Review of Technical, and Price Proposals*



The Technical Proposal and the Price Proposal will be reviewed separately as part of the Phase I evaluation process. For each site included in a proposer's submission, the City will first evaluate the non-price components of the proposal, including, but not limited to, the proposer's approach, qualifications, experience, responsiveness, required forms, litigation history, and all other elements related to the non-price evaluation factors identified in the Evaluation Criteria.

The City will also separately evaluate the Price Proposal for each site included in the proposer's submission, including site-specific pricing, basis of estimate, pricing assumptions, exclusions, and other applicable price-related evaluation factors identified in the Evaluation Criteria.

The City may utilize separate evaluation committees, or separate evaluators, to review the Technical Proposal and the Price Proposal. The results of those evaluations will be incorporated into the proposer's Phase I score for each applicable site in accordance with the Evaluation Criteria set forth in this RFP.

3. Split Award

The City reserves the right to award one contract, multiple contracts, or no contract, in whole or in part, as determined to be in the best interest of the City.

Proposals may be evaluated and awarded independently by site, by combination of sites, or for the full scope of sites identified in this RFP. Proposers may submit a proposal for any individual site, any combination of sites, or the full scope of sites.

If the City elects to make multiple awards, each award will be made from among responsive and responsible proposers based on the evaluation criteria set forth in this RFP. The City is not obligated to award all sites to a single proposer and may determine that separate awards provide the best overall value based on qualifications, technical approach, pricing, schedule, capacity, and implementation risk.

4. Supplemental Information and Negotiations

Request for Supplemental Information. If the City determines that any of the Proposals require further detail or lack sufficient alignment with the City's expectations for the Project, the City may issue a Request for Supplemental information to any such Proposer, which will include a date by which the Proposer's responses are due before negotiations are scheduled.

Each such Proposer shall submit its response to the City by the deadline specified and shall outline any/all changes and supplements made to its original Proposal.

The fact that the City may request such clarification from one Proposer does not obligate it to seek similar clarification from any other Proposer. The City may also consider and use as part of the evaluation, the operating costs, maintenance requirements, performance data and guarantees of major items of materials and equipment proposed for incorporation in the Project when such data is required to be submitted in the RFQ/P Documents or prior to the award of Contract.



After total scores are recorded, the highest-ranked Proposer will be invited to proceed with the contract process, and the City will attempt to reach a mutually agreeable price with the most qualified Proposer at a price the City determines to be fair and reasonable. The resulting written contract will bind the Proposer to furnish and deliver the requested services at prices included in the Price Proposal or, at City's option, at negotiated prices and in accordance with all conditions of the RFP, any addenda, and, if applicable, the successful Proposer's Proposal, including the best and final offer.

Best and Final Offers. City reserves the right to conduct discussions with all Proposers determined to be reasonably susceptible of being recommended for negotiation and Contract award. Discussion shall be for the purpose of clarification to assure full understanding of, and conformance to, the solicitation requirements. Proposers shall be accorded fair and equal treatment with respect to any opportunity for discussion and revision of Proposals and such revisions may be permitted after submissions and before recommendation for negotiation and Contract award for obtaining best and final offers. In conducting discussions, there shall be no disclosure of identity of competing Proposers or of any information derived from Proposals submitted by competing offerors

The City reserves the right to select the Proposer that, in its sole judgment, best meets its needs. Negotiations will be limited to the Price Proposal; the terms and conditions of the Standard Agreement are not subject to negotiation.

5. *Protest Procedure Process*

1. Prior to contract award and within five (5) business days after Proposer receives notice, as applicable that: 1) its Proposal is rejected; 2) it has not been short-listed, or 3) City intends to award the Contract, whichever occurs first, any responsive Proposer who has submitted a Proposal may file a protest with the Purchasing Administrator.
2. All protests must be in writing, dated, with the specific name of the Proposal, signed by an authorized representative of the company and must contain clear and complete statements of the reason(s) for the protest; including citing the law(s), regulations or procedures on which the protest is based. It is the sole responsibility of the aggrieved bidder/vendor to provide all necessary facts and evidence to support the written protest.
3. The Purchasing Administrator will review such protest and issue a written decision within ten (10) working days of receipt of the written protest. During this procedure the City shall not proceed with an award until such time that the decision is given in writing to the aggrieved Proposer.
4. Any appeal of the Purchasing Administrator's decision shall be made to the Director of Finance prior to the final award. The Director of Finance decision shall be binding and final.
5. In circumstances of urgent need and when it is in the best interest of the City to do so, the City Manager may dispense with the protest procedure.



6. To the extent the protest procedure deadlines in this solicitation conflict with the City's Standard Protest Procedures, the requirements provided in this RFP shall prevail.
7. Protests are to be mailed or hand delivered in a form requiring proof of delivery to the attention of the Purchasing Administrator at the following address: 100 N. Garfield, Room S348, Pasadena, CA 91109
8. In no event shall a protest be considered if all Proposals are rejected and/or after the award of a contract.
9. Any Proposal protest that does not comply with the process provided for in this section shall not be reviewed.



11. State of California Prevailing Wages

1. **PREVAILING WAGE RATE PROJECT**

The prevailing wage rate provisions of Section 1770-1777 of the Labor Code and Section 7-2, entitled "Labor", of the Standard Specifications shall apply to this project. However, if there is a difference between the Pasadena Living Wage and Prevailing Wage rates for similar classifications of labor, the contractor and his subcontractors shall pay no less than the highest wage rate.

In responding to this request, all professional firms or contractors agree to comply with prevailing wage requirements, the Department of Industrial Relations, as further described below:

Contractor is aware of the requirements of California Labor Code Section 1720, et seq., and 1770, et seq., as well as California Code of Regulations, Title 8, Section 1600, et seq., ("Prevailing Wage Laws"), which require the payment of prevailing wage rates, that Contractor and all subcontractors must be registered and pay the registration fee with the Department of Industrial Relations (DIR), Contractor shall be subject to compliance monitoring and enforcement by the DIR, and the performance of other requirements on "Public Works" and "Maintenance" projects. If the services are being performed as part of an applicable "Public Works" or "Maintenance" project, as defined by the Prevailing Wage Laws, and if the total compensation is \$1,000 or more, Contractor agrees to fully comply with such Prevailing Wage Laws.

2. **NOTICE REQUIREMENTS**

No contractor or subcontractor may be listed on a bid proposal for a public works project unless registered with the Department of Industrial Relations pursuant to Labor Code section 1725.5 [with limited exceptions from this requirement for bid purposes only under Labor Code section 1771.1(a)].

No contractor or subcontractor may be awarded a contract for public work on a public works project unless registered with the Department of Industrial Relations pursuant to Labor Code section 1725.5.

This project is subject to compliance monitoring and enforcement by the Department of Industrial Relations.



12. Public Contract Claims Procedure

PUBLIC CONTRACT CODE SECTION 9204 PUBLIC WORKS CLAIMS PROCEDURE

AB 626, approved by the Governor on September 29, 2016, created a new Public Contract Code Section 9204, which specifies new procedural requirements for claims submitted by a contractor on any public works project. These new requirements contain burdens for both private contractors and public entities and are specifically made applicable to charter cities.

For this legislation, a "public works project" is defined as "the erection, construction, alteration, repair, or improvement of any public structure, building, road, or other public improvement of any kind." This definition is not as broad as in the Prevailing Wage Law.

A "claim" is defined as "a separate demand by a contractor sent by registered mail or certified mail with return receipt requested..." and is limited to three types of contract disputes:

1. "A time extension...for relief from damages or penalties for delay assessed by a public entity..."
2. "Payment by the public entity of money or damages arising from work done by, or on behalf of, the contractor pursuant to the contract for a public works project and payment for which is not otherwise expressly provided or to which the claimant is not otherwise entitled", and/or
3. "Payment of an amount that is disputed by the public entity."

Upon receipt of a claim, a public entity must "conduct a reasonable review" and provide a written statement to the contractor within 45 days of receipt of the claim. Failure of a public entity to respond to a claim within the time periods described in Section 9204 "shall result in the claim being deemed rejected in its entirety."

For any undisputed portion of a claim, a public entity must make payment within 60 days of the public entity's issuance of the written statement.

If the contractor disputes the public entity's written statement, or if the public entity fails to respond, the contractor may demand "an informal conference to meet and confer for settlement of the issues in dispute." The public entity must schedule the meet and confer conference within 30 days of the demand.

Within 10 business days following the meet and confer conference, the public entity must provide a written statement identifying the portion of the claim that remains in dispute.

Any payment due on an undisputed portion of the claim must be made within 60 days of the meet and confer conference. Amounts not paid in a timely manner shall bear interest at 7 percent per year.

After the meet and confer conference, any disputed portion of the claim "shall be submitted to non-binding mediation." If mediation fails to resolve the dispute, the parts of the claim that remain in dispute shall be subject to applicable procedures outside Section 9204 (statutory and contractual).

The full text of this new legislation is set forth below:



THE PEOPLE OF THE STATE OF CALIFORNIA DO ENACT AS FOLLOWS:

SECTION 1.

Section 9204 is added to the Public Contract Code, to read:

9204.

(a) The Legislature finds and declares that it is in the best interests of the state and its citizens to ensure that all construction business performed on a public works project in the state that is complete and not in dispute is paid in full and in a timely manner.

(b) Notwithstanding any other law, including, but not limited to, Article 7.1 (commencing with Section 10240) of Chapter 1 of Part 2, Chapter 10 (commencing with Section 19100) of Part 2, and Article 1.5 (commencing with Section 20104) of Chapter 1 of Part 3, this section shall apply to any claim by a contractor in connection with a public works project.

(c) For purposes of this section:

(1) "Claim" means a separate demand by a contractor sent by registered mail or certified mail with return receipt requested, for one or more of the following:

(A) A time extension, including, without limitation, for relief from damages or penalties for delay assessed by a public entity under a contract for a public works project.

(B) Payment by the public entity of money or damages arising from work done by, or on behalf of, the contractor pursuant to the contract for a public works project and payment for which is not otherwise expressly provided or to which the claimant is not otherwise entitled.

(C) Payment of an amount that is disputed by the public entity.

(2) "Contractor" means any type of contractor within the meaning of Chapter 9 (commencing with Section 7000) of Division 3 of the Business and Professions Code who has entered into a direct contract with a public entity for a public works project.

(3) (A) "Public entity" means, without limitation, except as provided in subparagraph (B), a state agency, department, office, division, bureau, board, or commission, the California State University, the University of California, a city, including a charter city, county, including a charter county, city and county, including a charter city and county, district, special district, public authority, political subdivision, public corporation, or nonprofit transit corporation wholly owned by a public agency and formed to carry out the purposes of the public agency.

(B) "Public entity" shall not include the following:

The Department of Water Resources as to any project under the jurisdiction of that department.

The Department of Transportation as to any project under the jurisdiction of that department.

The Department of Parks and Recreation as to any project under the jurisdiction of that department.

The Department of Corrections and Rehabilitation with respect to any project under its jurisdiction pursuant to Chapter 11 (commencing with Section 7000) of Title 7 of Part 3 of the Penal Code.



The Military Department as to any project under the jurisdiction of that department.

The Department of General Services as to all other projects.

The High-Speed Rail Authority.

(4) "Public works project" means the erection, construction, alteration, repair, or improvement of any public structure, building, road, or other public improvement of any kind.

(5) "Subcontractor" means any type of contractor within the meaning of Chapter 9 (commencing with Section 7000) of Division 3 of the Business and Professions Code who either is in direct contract with a contractor or is a lower tier subcontractor.

(d) (1) (A) Upon receipt of a claim pursuant to this section, the public entity to which the claim applies shall conduct a reasonable review of the claim and, within a period not to exceed 45 days, shall provide the claimant a written statement identifying what portion of the claim is disputed and what portion is undisputed. Upon receipt of a claim, a public entity and a contractor may, by mutual agreement, extend the time period provided in this subdivision.

(B) The claimant shall furnish reasonable documentation to support the claim.

(C) If the public entity needs approval from its governing body to provide the claimant a written statement identifying the disputed portion and the undisputed portion of the claim, and the governing body does not meet within the 45 days or within the mutually agreed to extension of time following receipt of a claim sent by registered mail or certified mail, return receipt requested, the public entity shall have up to three days following the next duly publicly noticed meeting of the governing body after the 45-day period, or extension, expires to provide the claimant a written statement identifying the disputed portion and the undisputed portion.

(D) Any payment due on an undisputed portion of the claim shall be processed and made within 60 days after the public entity issues its written statement. If the public entity fails to issue a written statement, paragraph (3) shall apply.

(2) (A) If the claimant disputes the public entity's written response, or if the public entity fails to respond to a claim issued pursuant to this section within the time prescribed, the claimant may demand in writing an informal conference to meet and confer for settlement of the issues in dispute. Upon receipt of a demand in writing sent by registered mail or certified mail, return receipt requested, the public entity shall schedule a meet and confer conference within 30 days for settlement of the dispute.



(B) Within 10 business days following the conclusion of the meet and confer conference, if the claim or any portion of the claim remains in dispute, the public entity shall provide the claimant a written statement identifying the portion of the claim that remains in dispute and the portion that is undisputed. Any payment due on an undisputed portion of the claim shall be processed and made within 60 days after the public entity issues its written statement. Any disputed portion of the claim, as identified by the contractor in writing, shall be submitted to nonbinding mediation, with the public entity and the claimant sharing the associated costs equally. The public entity and claimant shall mutually agree to a mediator within 10 business days after the disputed portion of the claim has been identified in writing. If the parties cannot agree upon a mediator, each party shall select a mediator and those mediators shall select a qualified neutral third party to mediate with regard to the disputed portion of the claim. Each party shall bear the fees and costs charged by its respective mediator in connection with the selection of the neutral mediator. If mediation is unsuccessful, the parts of the claim remaining in dispute shall be subject to applicable procedures outside this section.

(C) For purposes of this section, mediation includes any nonbinding process, including, but not limited to, neutral evaluation or a dispute review board, in which an independent third party or board assists the parties in dispute resolution through negotiation or by issuance of an evaluation. Any mediation utilized shall conform to the timeframes in this section.

(D) Unless otherwise agreed to by the public entity and the contractor in writing, the mediation conducted pursuant to this section shall excuse any further obligation under Section 20104.4 to mediate after litigation has been commenced.

(E) This section does not preclude a public entity from requiring arbitration of disputes under private arbitration or the Public Works Contract Arbitration Program, if mediation under this section does not resolve the parties' dispute.

(3) Failure by the public entity to respond to a claim from a contractor within the time periods described in this subdivision or to otherwise meet the time requirements of this section shall result in the claim being deemed rejected in its entirety. A claim that is denied by reason of the public entity's failure to have responded to a claim, or its failure to otherwise meet the time requirements of this section, shall not constitute an adverse finding with regard to the merits of the claim or the responsibility or qualifications of the claimant.

(4) Amounts not paid in a timely manner as required by this section shall bear interest at 7 percent per annum.



(5) If a subcontractor or a lower tier subcontractor lacks legal standing to assert a claim against a public entity because privity of contract does not exist, the contractor may present to the public entity a claim on behalf of a subcontractor or lower tier subcontractor. A subcontractor may request in writing, either on his or her own behalf or on behalf of a lower tier subcontractor, that the contractor present a claim for work which was performed by the subcontractor or by a lower tier subcontractor on behalf of the subcontractor. The subcontractor requesting that the claim be presented to the public entity shall furnish reasonable documentation to support the claim. Within 45 days of receipt of this written request, the contractor shall notify the subcontractor in writing as to whether the contractor presented the claim to the public entity and, if the original contractor did not present the claim, provide the subcontractor with a statement of the reasons for not having done so.

(e) The text of this section or a summary of it shall be set forth in the plans or specifications for any public works project that may give rise to a claim under this section.

(f) A waiver of the rights granted by this section is void and contrary to public policy, provided, however, that (1) upon receipt of a claim, the parties may mutually agree to waive, in writing, mediation and proceed directly to the commencement of a civil action or binding arbitration, as applicable; and (2) a public entity may prescribe reasonable change order, claim, and dispute resolution procedures and requirements in addition to the provisions of this section, so long as the contractual provisions do not conflict with or otherwise impair the timeframes and procedures set forth in this section.

(g) This section applies to contracts entered into on or after January 1, 2017.

(h) Nothing in this section shall impose liability upon a public entity that makes loans or grants available through a competitive application process, for the failure of an awardee to meet its contractual obligations.

(i) This section shall remain in effect only until January 1, 2027, and as of that date is repealed, unless a later enacted statute that is enacted before January 1, 2027, deletes or extends that date.

(Amended by Stats. 2019, Ch. 489, Sec. 1. (AB 456) Effective January 1, 2020. Repealed as of January 1, 2027, by its own provisions.)

SEC. 2.

The Legislature finds and declares that it is of statewide concern to require a charter city, charter county, or charter city and county to follow a prescribed claims resolution process to ensure there are uniform and equitable procurement practices.

SEC. 3.

If the Commission on State Mandates determines that this act contains costs mandated by the state, reimbursement to local agencies and school districts for those costs shall be made pursuant to Part 7 (commencing with Section 17500) of Division 4 of Title 2 of the Government Code.



13. Evaluation Criteria

Responsive proposals will be evaluated in accordance with the Review and Award Recommendation Process and the criteria set forth in this RFP.

Evaluation of proposals will be based on a competitive selection process and will not be based on price alone. The City will consider the Proposer's ability to satisfy the requirements of this solicitation, together with the Proposer's qualifications, experience, technical approach, and pricing. This RFP has been structured to provide specific requirements that establish a standardized framework for evaluation, and the weighted scoring is intended to reflect the factors most important to this solicitation.

In Phase I, the City will evaluate the written proposal submissions for each site included in a proposer's submission, including the Statement of Qualifications and Experience, Technical Proposal, and Price Proposal, in accordance with the applicable evaluation criteria and point allocations set forth in this RFP.

In Phase II, shortlisted proposers shall participate in mandatory interviews in accordance with the Review and Award Recommendation Process set forth in this RFP. Any applicable interview points awarded in Phase II will be added to the proposer's Phase I score for each applicable site to determine the final score for that site.

Final ranking and award recommendation will be based on site-specific best value using the total average points awarded by the evaluators across all applicable scoring categories. The City reserves the right, in consultation with the selection panel, to reject any and all proposals, to waive immaterial irregularities, and to take any other action permitted by this RFP and applicable law.

Responsive proposals will be scored using the following evaluation criteria and weights:

1. Phase 1 – Evaluation Criteria and Point Allocation



No.	Evaluation Criteria	Scoring Method	Weight (Points)
1.	Statement of Qualifications and Experience The City will evaluate the Proposer's qualifications, organizational capacity, relevant experience, and demonstrated ability to successfully perform work of similar scope, size, complexity, and delivery method. Evaluation may include consideration of the Proposer's experience with comparable solar and energy storage projects, experience with design-build or similar alternative project delivery methods, experience with public agencies and utilities, the qualifications and relevant experience of the proposed key personnel, the quality and relevance of the reference projects provided, the Proposer's demonstrated capacity to manage multiple-site implementation successfully, and the Proposer's demonstrated financial capacity and organizational stability to support construction, commissioning, and the required five (5) years of operations, maintenance, and monitoring services.	Points Based	20 (20% of Total)
2.	Project Methodology and Execution Plan The City will evaluate the extent to which the Proposer demonstrates a clear, practical, and well-coordinated approach to performing the Scope of Work, including site evaluation and feasibility assessment, engineering and design development, permitting, procurement, construction execution, commissioning, and five (5) years of operations, maintenance, and monitoring services. Evaluation may include the Proposer's understanding of site-specific constraints, coordination requirements, EV infrastructure considerations, stakeholder engagement support, and the City's objectives for solar deployment and energy storage where feasible.	Points Based	15 (15% of Total)
3.	Project Schedule The City will evaluate the reasonableness, completeness, and feasibility of the Proposer's preliminary Project schedule for the sites included in its Proposal, including sequencing, milestone identification, critical path awareness, long-lead procurement planning, and the Proposer's ability to support timely implementation of the proposed scope. Evaluation will include the Proposer's ability to support completion by June 2028.	Points Based	10 (10% of Total)



4.	Conceptual Schematics and Design The City will evaluate the quality, completeness, and technical credibility of the Proposer's conceptual layouts and preliminary design information for the Project sites included in its Proposal. Evaluation may include the Proposer's demonstrated understanding of site conditions, available space, equipment arrangement, electrical interconnection approach, EV infrastructure coordination, and the feasibility of proposed solar and energy storage configurations.	Points Based	10 (10% of Total)
5.	Equipment and Technical Information The City will evaluate the suitability, quality, and technical appropriateness of the proposed major equipment and systems, including the extent to which the Proposal demonstrates compatibility with the Project requirements, operational objectives, conceptual design approach, and long-term performance expectations.	Points Based	7 (7% of Total)
6.	Regulatory, Legislative, Tariff, and Supply Chain Risk Analysis The City will evaluate the Proposer's understanding of external risks that may affect Project cost, schedule, feasibility, equipment availability, or delivery. Evaluation may include the Proposer's identification of relevant regulatory, legislative, tariff, supply chain, and sourcing-related risks, together with the quality and practicality of its proposed mitigation strategies.	Points Based	8 (8% of Total)
7.	Site Pricing and Operations and Maintenance Pricing The City will evaluate the extent to which the Proposer's pricing for the proposed work, including design-build services and required operations and maintenance services, is reasonable, complete, and appropriate for the services required. Evaluation may include the clarity and reasonableness of pricing by site, any additive pricing associated with energy storage, the reasonableness of operations and maintenance pricing, and any assumptions or qualifications affecting proposed pricing.	Points Based	10 (10% of Total)



8.	Basis of Estimate and Pricing Transparency The City will evaluate the credibility, completeness, and reasonableness of the Proposer's basis of estimate and pricing transparency. Evaluation may include consideration of whether the Proposer demonstrates a sound understanding of probable project costs, pricing assumptions, exclusions, contingencies, major cost drivers, and the clarity and usefulness of the pricing support provided.	Points Based	10 (10% of Total)
9.	Local Pasadena Business To be awarded a 5 point preference for this category, the proposer must have an official business address within the City of Pasadena at the time that this RFP is posted on the City's Website.	Pass / Fail	5 (5% of Total)
10.	Small or Micro-Business To be awarded a 5 point preference for this category, the proposer must be certified by the State of California as a small or micro-business. Refer to the State of California Department of General Services Division for further information. https://caleprocure.ca.gov/pages/sbdvbe-index.aspx	Pass / Fail	5 (5% of Total)

2. Phase 2 – Interview Evaluation Criteria



No.	Evaluation Criteria	Scoring Method	Weight (Points)
1.	Project Understanding and Approach The City will evaluate the Proposer's demonstrated understanding of the Project, site-specific considerations, implementation approach, and the City's objectives for solar deployment, energy storage where feasible, and EV infrastructure coordination for the sites for which the Proposer has been shortlisted.	Points Based	4 (20% of Total)
2.	Key Personnel Qualifications and Team Coordination The City will evaluate the qualifications, preparedness, and coordination of the proposed key personnel who will be responsible for delivering the sites for which the Proposer has been shortlisted.	Points Based	4 (20% of Total)
3.	Approach to Cost, Schedule, and Risk Management The City will evaluate the Proposer's ability to explain and support its approach to cost control, schedule management, procurement planning, risk mitigation, equipment availability, and timely delivery of the proposed scope. Evaluation may include the Proposer's ability to support completion by June 2028.	Points Based	4 (20% of Total)
4.	Responsiveness to Questions and Overall Interview Quality The City will evaluate the Proposer's responsiveness, clarity, communication, and ability to address City questions in a clear, practical, and well-coordinated manner during the interview.	Points Based	3 (15% of Total)
5.	Approach to Multi-Site Delivery and Implementation Efficiency The City will evaluate the Proposer's ability to explain how award of multiple sites to that Proposer, if determined to be in the City's best interest, could provide implementation benefits to the City. Evaluation may include consideration of the Proposer's approach to coordinated mobilization, sequencing, procurement, staffing, schedule management, construction consistency, reduced disruption to City operations, and efficiency in long-term operations and maintenance support.	Points Based	5 (25% of Total)



14. Submittal Instructions

1. *Early Preparation for Submission*

We value your participation in this solicitation and want to ensure you have every opportunity to present your response in the manner instructed in this solicitation. It is important that you submit **a complete response prior to 1:00 pm on Wednesday, September 30, 2026** through this eProcurement portal. We strongly advise against waiting to within the last three days of the submittal deadline to begin working on your response. Starting early on your response increases time to:

- Thoroughly review all requirements and the entire solicitation document.
- Gather, organize, and complete the necessary documents for submittal.
- Address any unforeseen technical issues that may arise during the preparation or submittal of your response.

Delaying your response may result in errors, or can cause you to miss the submission deadline. Either of which can negatively impact your submittal or cause your submittal to not be accepted.

2. *Training Resources for Vendors:*

Screen Shots:

Instructions for the new eProcurement System: The following link will help you [Get Started](https://opengov.my.site.com/support/s/article/c7a5affa-e073-4d5a-8d87-b6eadcf343a9) (<https://opengov.my.site.com/support/s/article/c7a5affa-e073-4d5a-8d87-b6eadcf343a9>) and will include vendor guides for using the system. Below are additional screen shots for support.

All Video Guides: OpenGov Procurement Vendor Training

1. [New Supplier Account](#)
2. [Submit a Bid or Proposal](#)
3. [Updating Your Company Designation on a Solicitation](#)
4. [Vendor Selection of Category Codes](#)
5. [How To Subscribe To Organizations And Find Active RFPs & Bids](#)
6. [Login Process](#)
7. [How to Edit or Withdraw your Proposal after it's been Submitted](#)
8. [How to Submit a Question](#)
9. [Viewing Bid Results](#)

Video Trainings



3. *OpenGov Technical Support*

Technical support for an eProcurement system plays a vital role in ensuring smooth operations. You can call or email technical support using the information below.

- **Phone:** (650) 336-7167
- **Email:** support@support.opengov.com
- **Issue Log:** <https://opengov.my.site.com/support/s/contactsupport/incident>
- **Live Chat:** Click on the circle blue icon  at the bottom right of the screen.

4. *Internet Access*

- A. The City cannot guarantee that equipment involved in Solicitation Submission will be available to provide information or receive transmittals. It is your responsibility to ensure that you have current information and that your Submission is received as instructed in this solicitation complete and prior to the deadline. The City is not responsible for the confidentiality of information transmitted over the Internet.
- B. It is the Respondent's responsibility to review your status in our eProcurement system and update your contact information and notification preferences accordingly.
- C. The City does not recommend waiting until the last two days to start preparing or submitting your response.

5. *Electronic Submission and Delivery Instructions*

Parties interested in responding are required to submit electronically through the City of Pasadena's [eProcurement Portal](#) prior to 1:00 pm, Wednesday, September 30, 2026. Please upload all required documents as instructed in the section named [Submittals/Checklist](#) sufficiently early electronically through the city's eProcurement Portal before the time and day listed in this solicitation. Responses must be received in the system prior to the deadline.

The Specification or Scope of Work included in this Notice shall be considered part of any contract made pursuant thereunder.

6. *Withdrawal of Proposal*

Any Bidder or Proposer may withdraw their response via the City's [eProcurement Portal](#) prior to 1:00 pm on Wednesday, September 30, 2026.

7. *City Changes to the Solicitation Documents*



The City reserves the right to change any part of these Instructions and Specifications any time prior to the bid opening. Any changes shall be in the form of addenda and will become a part of the bid documents and of the contract. Addenda shall be made available to each Bidder or Proposer. A Bidder's or Proposer's failure to address the requirements of the addenda may result in the response not being considered. If the City determines that a time extension is required for the bid, the addenda will give the new submission date.

Addenda shall be acknowledged via the City's [eProcurement Portal](#) for the project named "Design-Build Services for Solar and Energy Storage Installations at Category 1 City-Owned Properties." Project ID: 2026-RFP-0189. Bidders or Proposers can view a list of addenda released by the City by clicking on "Addenda & Notices." While drafting a response, there is a section for "Addenda Confirmation" where Bidders or Proposers must acknowledge each addenda released.

8. Deadline for Questions

The deadline to submit questions related to this solicitation is Thursday, September 3, 2026, prior to 1:00 pm.

Questions regarding this solicitation should be submitted directly through the City's eProcurement Portal Q&A function. Do not contact any City employee or official regarding this solicitation. Any questions submitted after the date and time specified may not be considered.

9. Follow these simple steps to submit your proposal electronically:

If you are already registered and need help logging in or retrieving your user information utilize the blue chat bubble visible on the lower right hand corner of the screen.

Click on the hyperlink for the City's [eProcurement Portal](#) to create your vendor profile.

Electronic Submission of Bids

All Proposers are required to submit their bid pricing electronically via the city's eProcurement Portal. The electronic system will close submission exactly at the date and time set forth in this solicitation or as changed by addenda. In addition, your bid must be submitted via the eProcurement Portal.

Proposers are responsible for submitting and having their bid accepted before the closing time set forth in this solicitation or as changed by addenda. NOTE: It is the Proposer's sole responsibility to ensure their bid and document(s) are uploaded, transmitted, and arrive in time electronically. The City will have no responsibility for bids that do not arrive in a timely manner, no matter what the reason.

Upon closing of the Bid, Bid Results will be available on the City's eProcurement Portal.

In the case of a discrepancy between the electronic bid schedule (pricing) and any uploaded Bid schedule document or pricing, the electronic bid schedule will be the accepted bid.

Steps to Submit Your Electronic Proposal:

To submit an offer to the City, vendor must begin by clicking on the green DRAFT PROPOSAL button.



<https://procurement.opengov.com/portal/pasadena/projects/249748>

1. Acknowledge all Addenda
2. Accept City of Pasadena Terms and Conditions Message
3. Answer all required vendor questions.
4. Upload all required forms. Proposer may save their work and return.
5. Review your work and submit proposal when ready.
6. You will receive a confirmation email from OpenGov upon receipt of your bid/proposal.
7. Proposer may withdraw their bid at any time **prior to** 1:00 pm on Wednesday, September 30, 2026.

Note: If an addenda is issued after a response has been submitted, Proposer or bidder must return to take steps below. Failure to do both steps will result in an invalidated offer.

- 1- Acknowledge the new addenda; and
- 2- Resubmit your bid through the City's eProcurement Portal.

Do Not upload a Zip File: Unzip Your Files

Note: If your files are [zipped or] in a zip folder, you may need to unzip the files before uploading. The following instructions may be helpful to do so.

1. Open File Explorer, and find the zipped folder.
2. To unzip the entire folder, right-click to select Extract All, and then follow the instructions.
3. To unzip a single file or folder, double-click the zipped folder to open it. Then, drag or copy the item from the zipped folder to a new location.

10. Vendor Registration Instructions & Customer Service information:

Click here to register onto the City's [eProcurement Portal](#) hosted by OpenGov.

If you are already registered and need help logging in or retrieving your user information simply click on the blue chat bubble on the lower right hand corner of your screen or contact OpenGov at procurement-support@opengov.com for help at any time.

Customer Service

For assistance with e-bidding or uploading documents: Contact OpenGov via the blue chat bubble on the lower right hand corner of your screen or email at procurement-support@opengov.com.

Monday through Friday 5 am - 5 pm PST, except statutory holidays-- response time is typically less than ten minutes.



11. Surety2000 Instructions

Bid bond is NOT required



15. Submittals/Checklist

The response to this RFP must be made according to the requirements set forth in this Article, both for content and for sequence. Noncompliance with these requirements or the inclusion of conditions, limitations, or misrepresentations, may be cause for rejection of the proposal.

1. *Acknowledgements*

a) **Proposer Certification***

By submitting this bid the proposer hereby certifies under penalty of perjury of the laws of the State of California that all representations made in the documents that comprise the proposal for Design-Build Services for Solar and Energy Storage Installations at Category 1 City-Owned Properties due on Wednesday, September 30, 2026 are true and correct to the best of my knowledge at the time of the proposal's submission.

By confirming, the vendor is acknowledges the following:

- We have reviewed and agreed to all of the documents contained in this solicitation and understands that the City will not be responsible for any errors or omissions on the part of the vendor in making up this bid or proposal.
- The representations herein are made under penalty of perjury.
- We hereby offer to sell the City of Pasadena the materials, products, and/or services at the prices shown and under the terms and conditions included hereon or attached or referenced.

☐ Please confirm

*Response required

2. *CONTENTS OF PROPOSAL*

The entire proposal must be formatted on standard-size 8½"x11" pages; 12 point font only. The "Technical Proposal," "Additional Data," and "Statement of Qualifications" can be no more than 100 grand total pages.

b) **Mandatory Content***

- Cover letter
- Table of Contents
- Required Certifications AND Forms (see items in this Checklist)
- Technical Proposal
- Price Proposal
- Statement of Qualifications and Relevant Experience
- Additional Data (if required)



Subsequent to the closing of this solicitation, the selected vendor will be required to provide the following documents within 10 calendar days of being notified, otherwise the submitted proposal may be deemed non-responsive.

- Request for Tax Payer Identification Number and Certification ([IRS Form W-9](#))
- Pasadena Business License (if required)
- Any Required Licenses or Certifications
- All Insurance Required by this Solicitation (If Required) [#Insurance Requirements](#)

☐ Please confirm

*Response required

c) Cover Letter and Table of Contents *

Upload your Cover Letter and Table of Contents :

“Cover Letter” shall be a maximum one-page letter including the name and address of the organization submitting the proposal; whether the proposing firm is an individual, partnership, corporation or joint venture; and the name, mailing/e-mail addresses, and telephone/fax numbers the contact person who will be authorized to make representations for the organization.

*Response required

d) Separate Technical Proposal Only - Proposal Submittal*

“TECHNICAL PROPOSAL” should demonstrate the PROPOSER’S full understanding of the SCOPE OF WORK and the effort needed to complete the Project on time and within the budget through the submittal of a proposed work plan including project deliverables (identify specifically and thoroughly for each portion of and phase). No pricing shall be included in this section.

The TECHNICAL PROPOSAL shall include a proposed work schedule to indicate duration and completion dates, including the dates of Deliverables/Milestones and estimates of the amount of time to be spent with City Staff during each phase of the project.

The entire proposal must be formatted on standard-size 8½”x11” pages; 12 point font only. The "Technical Proposal," "Additional Data," and "Statement of Qualifications" can be no more than a grand total of 100 combined.

*Response required

e) Separate Price Proposal Submittal:*

Upload a separate file titled “Price Proposal.” The Price Proposal must be submitted separately from the technical proposal and must contain all pricing information required by the RFP. Do not include cost information in the technical proposal unless expressly requested by the City.

*Response required

f) Additional Data (if necessary)



"Additional Data" shall include any other data the PROPOSER deems essential to the evaluation of the proposal, i.e., letter of reference, other related projects, etc., or other required documents.

The entire proposal must be formatted on standard-size 8½"x11" pages; 12 point font only. The "Technical Proposal."

3. Preferences (if applied)

g) Is your company currently certified with the State of California Department of General Services (DGS) as a Small or Micro Business?*

If this preference is applied to the solicitation, and your company is seeking this preference, you must provide a copy of the certification from DGS.

☐ Yes

☐ No

*Response required

When equals "Yes"

h) Please upload a copy of your Current California DGS Certification*

*Response required

i) Is your company currently located within the boundary of the City of Pasadena?*

☐ Yes

☐ No

*Response required

When equals "Yes"

j) Please upload a copy of your Company's Pasadena Business License*

*Response required

4. QUALIFICATIONS

k) Copy of License or Certification*

Please upload a copy of your: Class A (General Engineering Contractor) or Class B (General Building Contractor), or, where sufficient for the full scope of Work of a particular site, Class C-10 Electrical (Specialty Contractor). Lead Architects and/or Engineers must hold an active license and registration in the State of California.

*Response required

l) California Department of Industrial Relations Registration Verification*



Solely for the purpose of verification. Please enter your Public Works Contractor Registration Number. This will be verified against the state database for the Department of Industrial Relations Registration.

*Response required

m) Statement of Qualifications and Relevant Experience*

Upload the Statement of Qualifications and Relevant Experience required by Section 2, General Instructions, subsection 4 of this RFP. This submittal shall include all information required by that section, except for the separate uploads required below.

*Response required

*Response required

n) Surety Letter*

Upload the surety letter required by Section 2, General Instructions, subsection 4, Statement of Qualifications and Relevant Experience. The surety letter shall confirm the Proposer's ability to obtain the payment and performance bonds required by the final contract for the applicable construction scope.

*Response required

o) Financial Statements*

Please upload financial statements for the most recent three (3) fiscal years, whether audited or otherwise prepared in the ordinary course of business, sufficient to demonstrate financial capacity, as required by Section 2, General Instructions, subsection 4, Statement of Qualifications and Relevant Experience. If the Proposer is relying on the financial strength of a parent company, affiliate, or other entity, this upload shall also include the supporting financial information for that entity.

*Response required

5. FORMS

Please download, complete and submit any required forms below.

p) AA1; AA2; AA3; SIGNATURE & LEGAL STATUS; AND DECLARATION OF NON-Collusion*

If your proposal does not include all of the below items, it may be deemed non-responsive.

- Each PROPOSER must submit a completed Form AA-1. Failure to submit this form will result in automatic disqualification with no exceptions unless PROPOSER has an approved form on file with the City.
- Form AA-2 is required to be submitted for projects involving labor or services in excess of \$25,000.
- Form AA-3 is Optional. (Copies attached)
- A completed and signed "Declaration of Non-Collusion." (Copy attached)



- SIGNATURE & LEGAL STATUS (Copy attached)
- Evidence of certification by State of California as a small or micro-business, if claiming such preference – <https://caleprocure.ca.gov/pages/PublicSearch/supplier-search.aspx>
- [REQUIRED FORMS - AAs - SIG...](#)

*Response required

q) Taxpayer Protection Amendment Disclosure *

Please download the below documents, complete, and upload.

ADDITIONAL REQUIREMENT

For RFP/RFQ where the selected vendor/contract will require City Council approval (check with City project manager for clarification), the following requirement applies:

- TAX PAYER PROTECTION ACT – PROPOSER SUBMITS A COPY OF THE COMPLETED TPA FORM TO THE CITY CLERK’S OFFICE

E-MAIL: OfficialRecords-CityClerk@Cityofpasadena.net

- [Pasadena Taxpayer Protectio...](#)

*Response required

r) Conflict of Interest*

Please download the below documents, complete, and upload.

- [CONFLICT OF INTEREST.pdf](#)

*Response required

s) Designated Representative*

Please download the below documents, complete, and upload.

- [DESIGNATED REPRESENTATIVESd...](#)

*Response required

t) DISQUALIFICATION DISCLOSURE*

Please download the below documents, complete, and upload.

- [DISQUALIFICATION DISCLOSURE...](#)

*Response required

u) Cost Proposal*

*Response required



